

The Nexus Requirement at a Crossroads: Rethinking the *One Central Reason* Standard

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Declaration

The work I have submitted is my own. I certify that all the material in the dissertation which is not my own work has been identified and acknowledged. No materials are included for which a degree has been previously conferred upon me.

Word Count: 14,869

A handwritten signature in black ink, appearing to read 'Tabitha Belshee', with a stylized, cursive script.

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This dissertation is submitted in remembrance of my mother, Karen Lynne Belshee, who was endlessly supportive of my goals and unfortunately, was not able to see this one completed.

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Abstract

The current US standard for evaluating whether an asylum seeker satisfies the nexus requirement is fundamentally flawed, with subjective and inconsistent application in practice. These issues are exacerbated by the decentralized nature of the asylum process, making it both challenging and often necessary to appeal nexus denials. While scholars like James Hathaway and Michelle Foster have commended the US adoption of the *one central reason* standard as progress, courts have frequently undermined its intended effect by disregarding or misapplying it. This paper contends that cases before the US Circuit Courts of Appeals demonstrate clear substantive and procedural patterns in cases denied due to nexus failures, revealing the urgent need for reform. Specifically, the US asylum system should move toward a nexus interpretation aligned with the Refugee Convention's intent, utilizing a modified version of Foster's *predicament approach* to enhance and supplement the *one central reason* standard. Such a shift would provide clearer guidance for adjudicators at all levels, significantly improving outcomes for asylum seekers and the legal practitioners who support them. Additionally, this paper offers practical, evidence-based mitigation strategies that can be implemented by a variety of stakeholders to improve nexus determinations, even before the adoption of the *predicament approach*.

1. Introduction

1,527,537 individuals currently await asylum hearings in Immigration Court in the United States.¹ Once their case surfaces through the backlog, the Immigration Judge (IJ) will determine if an applicant satisfies the definition of a refugee and whether their application merits the discretionary status of *asylee*.² The Immigration and Nationality Act (INA) defines a refugee as:

*“Any person who is outside any country of such person's nationality or, in the case of a person having no nationality, is outside any country in which such person last habitually resided, and who is unable or unwilling to return to, and is unable or unwilling to avail himself or herself of the protection of, that country because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion.”*³

The definition originated in the 1951 Convention on the Status of Refugees (“Refugee Convention”) as amended by the 1967 Protocol. Including the US, 149 countries – about 75% of UN Member and Observer States – are parties to the Refugee Convention or its 1967 Protocol.⁴ Articles 25-36 of the Refugee Convention oblige Contracting States to cooperate with UN bodies and implement the terms of the Convention in national legislation, including the definition. The primary components of the refugee definition in the US and international law are:

- Be outside one’s country of nationality or habitual residence and
- Be unwilling or unable to seek protection of that country and
- Have both an objective and subjective fear⁵ of

¹TRAC, *Immigration Court Quick Facts* (Transactional Records Access Clearinghouse, Syracuse University) https://trac.syr.edu/immigration/quickfacts/eoir.html#eoir_asylumbl accessed 2 October 2024.

²Immigration and Nationality Act (hereafter ‘INA’) § 207 and § 208.

³INA § 101(a)(42).

⁴UNHCR, *Refugee Treaty and Legislation Dashboard | Rights Mapping and Analysis Platform* https://rimap.unhcr.org/refugee-treaty-legislation-dashboard?_gl=1*1kdbzb5*_rup_ga*MTkzNDM4Njc1OS4xNzlyNjY2OTE4*_rup_ga_EVDQTJ4LjE4MTcyNDYxNDU3Mi41LjEuMTcyNDYxNTMzNS42MC4wLjA accessed 2 October 2024.

⁵USCIS, Well-Founded Fear Training Module (USCIS 2023) https://www.uscis.gov/sites/default/files/document/lesson-plans/Well_Founded_Fear_LP_RAIO.pdf

- Persecution which one has been subjected to or believes one will be subjected to
- *on account of*
- One's race, religion, nationality, membership in a particular social group, or political opinion.

Several key terms in the Refugee Convention were left undefined, giving it room to develop organically. In some cases, that has happened: *persecution* is left undefined in the Convention but has over time been defined by international human rights law (IHRL).⁶ Further clarification comes from the United Nations High Commissioner for Refugees (UNHCR) Guidance and Handbook. Per its mandate, UNHCR's recommendations are not legally binding but states like the US tend to utilize these recommendations within Refugee Status Determination (RSD) proceedings.⁷ However, despite these intersectional and institutional efforts to clarify the refugee definition, one component remains particularly nebulous in both scholarship and practice: demonstrating that one's persecution was "on account of" the protected identity, commonly called the *nexus*.

Even the UNHCR is largely silent on its interpretation. UNHCR's 332-page Procedural Standards offer "detailed procedural guidelines for every stage of the process of mandate [Refugee Status Determination]."⁸ The document is expansive and aimed at practitioners conducting RSD, even including templated surveys and evaluation criteria. However, missing from the document is even an expanded definition, let alone a suggested method of evaluation for the nexus requirement.

accessed 5 October 2024; James C Hathaway and William S Hicks, 'Is there a Subjective Element in the Refugee Convention's Requirement of "Well-Founded Fear"?' (2005) 26 Mich J Intl L 505.

⁶Vincent Chetail, 'Moving Towards an Integrated Approach of Refugee Law and Human Rights Law' in Cathryn Costello, Michelle Foster, and Jane McAdam (eds), *The Oxford Handbook of International Refugee Law* (Oxford University Press 2021).

⁷*INS v Cardoza-Fonseca* 480 U.S. 421 (1987); USCIS Refugee, Asylum, and International Operations Directorate (RAIO), Officer Training Module: Nexus and the Protected Grounds (24 July 2023) https://www.uscis.gov/sites/default/files/document/lesson-plans/Nexus_minus_PSG_RAIO_Lesson_Plan.pdf accessed 5 October 2024; see 'Legal Sources and Guidance Relating to Eligibility' in USCIS, *I-589 Instructions* (01 March 2023) <https://www.uscis.gov/sites/default/files/document/forms/i-589instr.pdf> accessed 2 October 2024.

⁸UNHCR, *Procedural Standards for Refugee Status Determination under UNHCR's Mandate* (August 2020) p. 16.

The suggested RSD questions simply read:

Is the persecution identified in III-2 for reasons of one or more of the grounds in the 1951 Convention/1967 Protocol?⁹

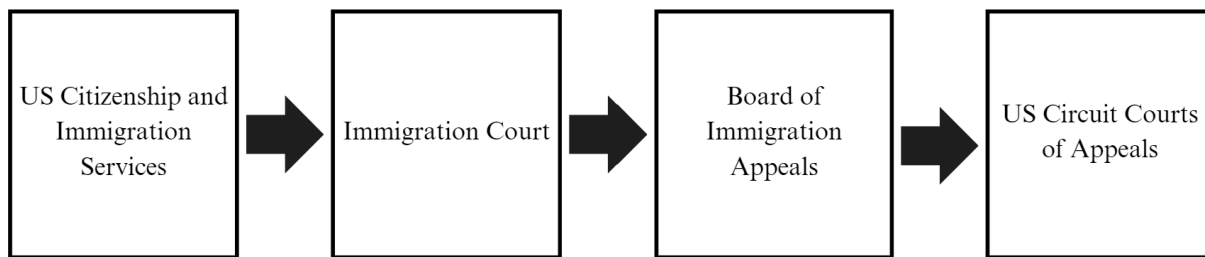
If YES, please select the relevant ground(s), specifying whether real or imputed. Please provide an explanation why the persecution is for reasons of (each of) the ground(s) selected.

Missing from these standards is how exactly one can demonstrate the second question's critical *why*. UNHCR is the guiding force of the Convention, and even it fails to functionally operationalize the nexus beyond the individual adjudicator's best judgment. This lack of practical guidance coupled with minimal scholarship has in part allowed legal misapplications of the nexus to happen in the shadows. These misapplications become wrongfully denied asylum applications and individuals being *refouled* to countries where they face persecution. Considering the opacity at the international level, the baseline risk for misinterpreting the nexus is high. Unfortunately, the risk increases when appealing a wrongful denial is procedurally onerous, as in the US.

This paper evaluates the US interpretation by studying how the nexus manifests at the final level an asylum seeker can appeal a denial, the US Circuit Courts of Appeals. The only entity higher than these appellate courts is the US Supreme Court, which curates their own docket and rarely opts to hear asylum cases. Therefore, this paper treats the Circuit Courts as the final level available to an asylum seeker appealing a denial. The process preceding this level is not the focus of this paper's study, but it is relevant for understanding the findings. The nature of the appeals process theoretically provides many opportunities for an applicant's case to be fairly adjudicated; however, in reality, it becomes a prohibitive and lengthy battle.

⁹ibid.

Figure 1: Asylum Appeals Process



Many years prior to being heard before the US Circuit Court of Appeals, asylum cases typically begin with US Citizenship and Immigration Services (USCIS), continue to Immigration Court, and are appealed before the Board of Immigration Appeals (BIA). The process is lengthy and steeped with adjudicator bias and administrative hurdles. USCIS failed to address 97% of affirmative asylum cases in 2022-2023 within the expected timeline.¹⁰ After USCIS, Immigration Court requires multiple calendar and merits hearings, which can stretch each case to be many years long. It is no surprise the Immigration Court backlog has surpassed 1,000,000 cases.¹¹ Similarly, as of June 2024, there are 113,414 appeals pending with the BIA.¹² There is little data regarding BIA timelines, though some advocacy groups suggest BIA appeals typically resolve within 6-18 months,¹³ though others encourage applicants to prepare for longer, citing a case that was open for more than 8 years.¹⁴ The process preceding the Circuit Court is important to understand because each step is not only onerous in length but presents the applicant with new limitations, cumulatively presenting a significant challenge to nexus appeals before the Circuit Court. This paper introduces and references these limitations as needed to contextualize the US

¹⁰See reference to individuals in affirmative proceedings in US Department of Homeland Security Office of Inspector General, USCIS Faces Challenges Meeting Statutory Timelines and Reducing Its Backlog of Affirmative Asylum Claims, OIG-24-36, 3 July 2024

<https://www.oig.dhs.gov/sites/default/files/assets/2024-07/OIG-24-36-Jul24.pdf> accessed 2 October 2024.

¹¹See entry 1 of the Appendix.

¹²Executive Office for Immigration Review, *All Appeals Filed, Completed, and Pending* (19 July 2024) <https://www.justice.gov/eoir/media/1344986/dl?inline> accessed 2 October 2024.

¹³Board of Immigration Appeals (Immigration Equality) <https://immigrationequality.org/asylum/asylum-manual/board-of-immigration-appeals/> accessed 2 October 2024.

¹⁴Asylum Appeals from Immigration Court (Tahirih Justice Center) March 2015, <https://www.tahirih.org/wp-content/uploads/2015/07/Asylum-Appeals-from-Immigration-Court.pdf> accessed 2 October 2024.

Circuit Court decisions. Through this lens, this paper's study develops a holistic critique of the nexus's misapplication before using empirical trends to argue for a new approach. More specifically, it contends that supplementing the current US nexus standard with a more practical test will prevent much of the misapplication and subsequent consequences imposed on asylum seekers today.

2. Literature review: Nexus Interpretation in Refugee Law

With a mind to the US jurisdiction, this section will introduce the main scholarship on the nexus requirement in refugee and forced migration studies. The nexus requirement has not thus far been a common topic of study in the US or internationally; therefore, an introduction to the legal and *de facto* interpretations are instructive and included in this section as well.

2.1 Scholarship on the Nexus Requirement

Legal scholarship has overwhelmingly – and understandably – focused on the nature of ‘well-founded fear’ of persecution itself and the Convention identities or grounds.¹⁵ Because the nexus is the thread connecting these core elements, it is difficult to justify isolating it when those individual components are still at the forefront, leaving a sizable gap in the literature on the topic thus far. Nevertheless, several developments must be addressed: the Michigan Guidelines on Nexus, the disputed legal duality between *motive* and *reason*, and the development of the *predicament approach*.

To date, the most impactful piece of scholarship on the nexus requirement is The Michigan Guidelines on Nexus to a Convention Ground (“Michigan Guidelines”). These guidelines are the product of the Second Colloquium on Challenges in International Refugee Law, held in Michigan, US in March 2001. The Michigan Guidelines are the first and only document to focus exclusively on the legal and practical considerations of the nexus requirement. They are not legally binding but offer practitioners and adjudicators guidance on how the nexus should be understood in international refugee law. They have been referenced in judicial proceedings internationally and remain the authoritative modern understanding of the nexus.¹⁶ The Guidelines also made significant contributions towards a greater academic understanding of

¹⁵Colloquium on Challenges in International Refugee Law, 'International Refugee Law: The Michigan Guidelines on Nexus to a Convention Ground' (2002) 23 Mich J Intl L 210 (hereafter ‘Michigan Guidelines’); Elena Fiddian-Qasmiyeh et al., ‘Introduction: Refugee and Forced Migration Studies in Transition’, in Elena Fiddian-Qasmiyeh et al. (eds), *The Oxford Handbook of Refugee and Forced Migration Studies* (Oxford University Press 2014).

¹⁶Endorsed by the House of Lords, see *Fornah v Secretary of State for the Home Department* 46 (UKHL 2006) at 434 [18]; and by New Zealand’s Refugee Status Appeals Authority, see *Refugee Appeal No 72635/01* (2002) Refugee Status Appeals Authority.

the nexus, so while the US has only briefly utilized the Guidelines in its adjudication,¹⁷ the academic advances are especially relevant to this paper:

1. The nexus, sometimes called the *causal link*, will be “revealed by evidence” of either the applicant’s past or fear of future persecution, or their country of origin’s withholding of effective protection.¹⁸
2. “A causal link may be established whether or not there is evidence of particularized enmity, malignity or animus.”¹⁹
3. A Convention ground separated from intention but contributing to enhanced risk of persecution may also satisfy the nexus requirement.²⁰
4. Causation standards in other fields of law, like civil and criminal, are often not forward-facing and therefore inappropriate to borrow from when interpreting the nexus requirement.²¹

It is worth considering how the US jurisdiction aligns with each point above. In the US, as with many other jurisdictions, the nexus requirement is seen as a matter of fact demonstrated through evidence. At a high level, this requirement is consistent with item 1.

Though contrary to items 2 and 3, the nexus was originally – and quite strangely still is – understood in the US to be reflective of the persecutor’s motives. This shortcoming is a hallmark of the US nexus understanding. Definitionally, these ideas are distinct: Black’s Law Dictionary defines *motive* as “something, especially willful desire, that leads one to act” and *reason* as a “cause that explains or accounts for something.”²² Focusing on a persecutor’s motives in practice requires the applicant and the fact finder – the Immigration Judge in this context – to intuit the inner desires of someone who is not present at the hearing. These cases are commonly heavily reliant on the applicant’s credible testimony, and it is challenging if not often impossible for

¹⁷*Erlin Bueso-Avila v Eric H. Holder, Jr* (7th Cir., 2011).

¹⁸Michigan Guidelines (n 15) para 8.

¹⁹Michigan Guidelines (n 15) para 9.

²⁰Michigan Guidelines (n 15) para 10.

²¹Michigan Guidelines (n 15) para 11.

²²Blacks Law Dictionary (10th ed. 2014, Thomson Reuters); Alicia Triche, ‘Nexus and the US Refugee Definition’ [2018] *The Federal Lawyer* 6.

someone to credibly testify about desires other than their own.²³ Furthermore, the refugee definition is forward-facing, see item 4, meaning that in some cases the actions pertaining to these inner desires have yet to occur, making them even more challenging to discuss let alone ascertain.

The 1992 landmark US Supreme Court case *INS v Elias-Zacarias* cemented the importance of *motive* within the US jurisdiction.²⁴ Thereafter, asylum applicants were required to provide direct or circumstantial evidence of their persecutor's motives as part of their filing. This requirement was cumbersome on all parties and widely critiqued as contributing to inconsistent adjudication.²⁵ It is therefore unsurprising that the role of motive was downplayed somewhat by Congress via the REAL ID Act of 2005, by intentionally opting for the word 'reason' in its stead.²⁶ Foster and Hathaway praised this transition as one that better aligns with international standards as it departed from the idea of motive.²⁷ The *one central reason* standard seemed to be a positive change: "the applicant must establish that race, religion, nationality, membership in a particular social group, or political opinion was or will be at least one central reason for persecuting the applicant."²⁸ Unfortunately, as this paper's study will demonstrate, the *one central reason* standard did not translate smoothly into practice, nor did the BIA follow through on deemphasizing the role of motive.²⁹ There is still ample precedent requiring courts to continue considering persecutorial intent.³⁰

Some countries evaluate the nexus as part of a holistic understanding of the definition's well-founded fear component. Conversely, the US's *one central reason* standard is an example of how the nexus can be treated as a standalone criterion.³¹ Some standards used in practices similar

²³James C Hathaway and Michelle Foster, *The Law of Refugee Status* (2nd edn, Cambridge University Press) p. 378.

²⁴*INS v Elias-Zacarias* 502 US 478 (1992).

²⁵'Most Important United States Supreme Court Case in Refugee Law: *I.N.S. v Elias-Zacarias* – Marquette University Law School Faculty Blog' (21 April 2009).
<https://law.marquette.edu/facultyblog/2010/12/most-important-united-states-supreme-court-case-in-refugee-law-i-n-s-v-elias-zacarias/> accessed 2 October 2024.

²⁶Deborah E Anker, *Law of Asylum in the United States* (2021-2022 edn, Thomson Reuters) at 409; Jeffrey Chase, 'The Proper Test for Nexus' (LexisNexis Community, 21 December 2021)
<https://www.jeffreyschase.com/blog/2021/12/21/the-proper-test-for-nexus/> accessed 2 October 2024; Triche (n 22)

²⁷Hathaway and Foster (n 23) p. 376.

²⁸INA 208(b)(1)(B)(i).

²⁹Chase (n 26)

³⁰*Matter of S-P-* (BIA 1996) 21 I&N Dec 486; *Matter of J-B-N- & S-M-* (BIA 2007) 24 I&N Dec 208.

³¹UNHCR, *Handbook on Procedures and Criteria for Determining Refugee Status* (February 2019)

to the US are: *sole cause*, *one central reason*, and *one factor/contributing cause*, and some courts use no explicit standard at all.³² These standards seek to evaluate how strongly linked one's persecution is to their Convention ground(s) listed in order of most to least stringent. *Sole cause* requires a Convention ground to be the only attributable reason behind an applicant's well-founded fear, a view largely rejected as inconsistent with the Convention even in the US.³³ *One factor/contributing cause* requires that a Convention ground be one of multiple reasons for an applicant's well-founded fear. All of these standards still appear in RSD around the world whether formally or de facto today.³⁴

These minimum strength standards are sometimes used in lieu of or in conjunction with other tests that prescribe a structured evaluation. One of the most common is the *but for* test. The *but for* test is very popular when evaluating causation in the US jurisdiction in torts and criminal law and describes a standard as well as a test. Examiners perform a thought experiment to evaluate whether theoretically removing the applicant's relevant identity would change the outcome. In other words, but for the applicant's identity, would they still have a well-founded fear? This test incorporates a standard because the goal of the test is to determine whether an identity is necessary for the well-founded fear to exist, requiring a sufficiently influential identity. Some practitioners have called to use the *but for* test in the US jurisdiction for the nexus requirement especially in the wake of it being applied in *Bostock v Clayton County*, a landmark Supreme Court employment discrimination case. Unfortunately, asylum is a bit more complex even if both areas focus on linking others' actions to an applicant's identities.³⁵ *But for* is by nature theoretical and reliant on a rich contextual understanding of an applicant's life and interactions with others. Establishing such a rich understanding even in instances of past persecution can be challenging during RSD due to the effects of trauma on testimony, cultural disconnects, and so on. It becomes even more tenuous in cases involving future persecution, which ties back to item 4 of the Michigan Guidelines previously mentioned. Tests for the nexus requirement must be able to accommodate situations involving future persecution just as aptly as those involving past persecution, which makes borrowing from other legal practices challenging.

³²Michelle Foster, 'Causation in Context: Interpreting the Nexus Clause in the Refugee Convention' (2002) 23 Mich J Intl L 265.

³³*Matter of S-P-* (BIA 1996) 21 I&N Dec 486; *Matter of J-B-N- & S-M-* (BIA 2007) 24 I&N Dec 208.

³⁴Hathaway and Foster (n 23) p. 387.

³⁵Chase (n 26)

In practice, these standards and tests are critiqued as artificially restrictive. Gender and feminist scholars, like Eva Nilsson and Martina Pomeroy, are particularly observant of the ways they do a disservice to applicants. Nilsson, focusing on Sweden, highlights the plight of women fleeing domestic abuse who are too often told that their asylum application fails to demonstrate a true nexus. They are told their persecution is linked to jealousy, or infidelity, when in reality their country fails to protect them because of systemic cultural and legal patriarchy.³⁶ Furthermore, Pomeroy argues that in many jurisdictions the nexus requirement is difficult to prove for survivors of human trafficking. Human traffickers persecute others, predominantly women, to run their business. Their reasons are arguably financial, though clearly a survivor's gender is often the reason why they were trafficked and not someone else.³⁷ Many of the traditional standards and tests mentioned above would overlook these survivors as refugees.

Michelle Foster, an esteemed scholar in international refugee law, was similarly dissatisfied with the traditional standards and tests used to understand the nexus. Building upon the Guidelines, she revisited what it would mean to remove subjectivity from the process by focusing on the applicant's objective circumstances. The work culminated in what she and James Hathaway, another authoritative legal scholar in the field, would later refer to as the *predicament approach*, a standard and test that focuses on the reasons for an applicant's current or future situation.³⁸ The *predicament approach* requires no knowledge or assumptions about the persecutor's motives. Instead, it focuses on the applicant's situation, or *predicament*: an individual satisfying the nexus under the predicament approach paradigm might provide credible testimony, country information, news articles, or data to demonstrate that individuals with a shared Convention identity face an elevated risk of persecution. The approach can be used on both direct and circumstantial evidence because both can establish trends of risk for individuals sharing a Convention ground. Risk can be empirical, and is especially informative in claims based on future persecution. Like its *but for* counterpart, the test has an implicit standard: the Applicant's Convention ground must demonstrably increase their risk of persecution. While not widely adopted, the *predicament approach* is the most significant new idea in the study of the nexus.

³⁶Eva Nilsson, 'Persecution on Account of One's Gender: Refugee Status or Status Quo?' (2012) 2 *Feminists@law*.

³⁷Martina Pomeroy, 'Left Out in the Cold: Trafficking Victims, Gender, and Misinterpretation of the Refugee Convention's "Nexus" Requirement' (2010) 16 *Mich J Gender & L* 45.3

³⁸Most notably, Foster (n 32)

2.2 The Nexus Requirement in the US

The US jurisdiction's own interpretation of the nexus requirement has experienced many changes, yet lacks cohesive practical implementation. The *one central reason* standard alone has sparked significant legal debates about, for example, what 'central' means. Some courts' interpretations are clearly inspired by the continued role of persecutor motive. For example, the Ninth Circuit argued that "a reason is central if it is 'essential' to the motivation of the persecutor."³⁹ Many other legal scholars and judges have focused on the negative definition – what is a non-central reason? These reasons are frequently called 'subordinate' and this debate plays a large role in US cases with mixed motives. For example, in *Hernandez-Avalos v Lynch*, the Fourth Circuit affirmed a mother's persecution was on account of her relationship to her son – in addition to avoiding gang involvement – when a gang threatened to kill her for not allowing him to join.⁴⁰ The role of gang recruitment is complicated in US asylum law and frequently nullifies claims. Yet, the Court ruled that her relationship to her son was a central, rather than subordinate, reason for her persecution. However, the Eleventh Circuit "declin[ed] to follow this reasoning because it expands the nexus inquiry to include family status as a central reason even when it is 'incidental' and 'subordinate to another reason for harm.'⁴¹

In addition to case law, regulatory changes have also modified the scope of the nexus in the US. The Department of Homeland Security modified asylum proceedings by publishing a new package of rules that took effect in 2021.⁴² In particular, the changes state that the Attorney General will not find that an applicant satisfies the nexus requirement under specific circumstances, including situations like interpersonal animus, imputed or legitimate gang affiliation, and gender.⁴³

Between case law and regulation, we have a relatively sound understanding of what the nexus is not, but what *is* it? The lack of clarity around this question will be explored in more detail through this paper's study. Adjudicators attempt to apply their individual understanding of

³⁹*Parussimova v Mukasey* (9th Cir 2009) in *Kelly Sanchez-Castro v US Attorney General* (11th Cir 2021).

⁴⁰*Hernandez-Avalos v Lynch* (4th Cir 2015).

⁴¹*Parussimova v Mukasey* (9th Cir 2009) 741 (internal quotation marks omitted); see also *Orellana-Recinos v Garland* (10th Cir 2021) 993 F.3d 851, 858–59.

⁴²See discussion in Federal Register/Vol. 85, No. 239/Friday, December 11, 2020.

⁴³8 CFR 208.1(f); See entry 2 of the Appendix for complete list.

the nexus subjected to the *one central reason* standard with varying degrees of closeness to the Refugee Convention's original intent. By evaluating the impact of the nexus's current interpretation(s), this paper will argue that applying Foster's *predicament approach* as a practical supplement to the *one central reason* standard will produce more consistent results that afford applicants a fair adjudication process.

3. Methodology

3.1 Data Collection

This study evaluates misapplications and the US understanding of the nexus requirement by analyzing trends across a sample of cases heard by the US Circuit Courts of Appeals whose legal interpretation bounds the BIA's interpretation of the INA. I focused on cases at the appellate level primarily because of this authority and because the nature of the appeals process amplifies the nexus inconsistencies and ramifications. Other scholars with similar focuses have also focused on the appellate level.⁴⁴

Furthermore, unlike initial asylum cases and hearings, most cases appealed to the US Circuit Courts of Appeals are publicly available. I made use of www.govinfo.gov's case search feature using the following search term and downloaded the first 1000 results when sorting by "Relevance."

collection:(USCOURTS) AND publishdate:range(2005-05-11,2024-01-01) AND "persecution" AND courttype:(APPELLATE) AND "protected ground"

The date range ensured that I would prevent pre-REAL ID cases from entering the sample. The phrase "protected ground" is used in the introduction to asylum cases to refer to Convention grounds. Including both "persecution" and "protected ground" successfully filtered out most non-asylum proceedings. Keyword filtering is not flawless but has been used in other studies concerning asylum appeals and appropriately restricted my sample.⁴⁵ Unfortunately, despite trying several keyword combinations, the sample does not include any cases from the Second Circuit because of the small caseload they have made available on govinfo's directory. This omission will return as a suggestion for future research later in this paper but must be accepted as a sampling limitation for now.

With my case sample downloaded, I used a random number generator to select the indices of my sample to remove any residual automatic sorting from the download. I initially planned to establish a sample of 100 cases; however, it became clear during data collection that

⁴⁴Hathaway and Foster (n 23) p. 382 - 390.

⁴⁵Connie Oxford, 'Legal Interpretations of Trauma: The U.S. Circuit Court of Appeals and Gender-Based Asylum Claims' (2024) 4 *Trauma Care* 120.

additional manual filtering was needed. Given the discard rate early on, I adjusted my sample to be 50 cases appealing denials either partially or entirely due to failing to satisfy the nexus requirement. Common reasons for removing a case from my sample included it being

- An appeal for Withholding of Removal, which is closely related to but not an asylum appeal.
- Proceedings that were administrative in nature.
- An asylum appeal that did not involve the nexus, even in part. The most common situations were adverse credibility findings.

I discarded 22 cases before arriving at my final sample of 50, from which the following data points were collected:

Table 1: Data Points Collected

Variable	Description
Date of Initial Filing	The applicant's earliest date of legal proceedings mentioned in the case. Often date of USCIS encounter or Immigration Court case but sometimes unknown.
COO	Country of Origin
Was the nexus the reason for the appeal?	Options: Yes, In Part, No* 'No' responses were conservatively removed. If it was unclear whether the nexus was part of why a case was denied, then I selected "No".
Does the Court apply the <i>one central reason</i> standard?	Options: Yes, No Yes. The Court offered case-specific analysis on whether the case satisfied the standard. No. The Court did not mention the standard in any

	substantive capacity. This will be discussed in depth throughout the paper.
(If yes) How? Did the Circuit Court take issue with how the IJ/BIA applied the <i>one central reason</i> standard?	Free response focusing on how the <i>one central reason</i> standard was applied and whether the Court found an issue in how the IJ/BIA applied it.
(If no) Why not? What did they apply instead?	How did the Court evaluate the nexus if not through the <i>one central reason</i> standard?
Outcome	Options: Granted, Remanded, Dismissed, Denied, Vacated Circuit Court appeals can present multiple arguments and therefore have more than one outcome. One appeal can result in the petition being in part dismissed, denied, and granted, and the BIA decision being simultaneously in part vacated, remanded, and granted. ⁴⁶
Notes	Notes

The data required minimal cleaning. One case's URL was broken, but the case was easy to find using the rest of the information: name, circuit, and date. That experience dissuaded me from normalizing the names of the cases. For example, there will be some cases referred to as *X v Attorney General* and some referred to as *X v Att'y*. I believe retaining the searchability of a case's online presence is more important than standardizing the names for largely aesthetic reasons in this paper; therefore, the cases will be referred to using the language under which they were posted.

The data used in my sample is available in a repository on Github, a data and code-sharing platform at <https://github.com/tabicat444/Nexus-Appeals> along with a note on

⁴⁶For example, *Nelida Ramirez Mendez v US Attorney General* (11th Cir 2023).

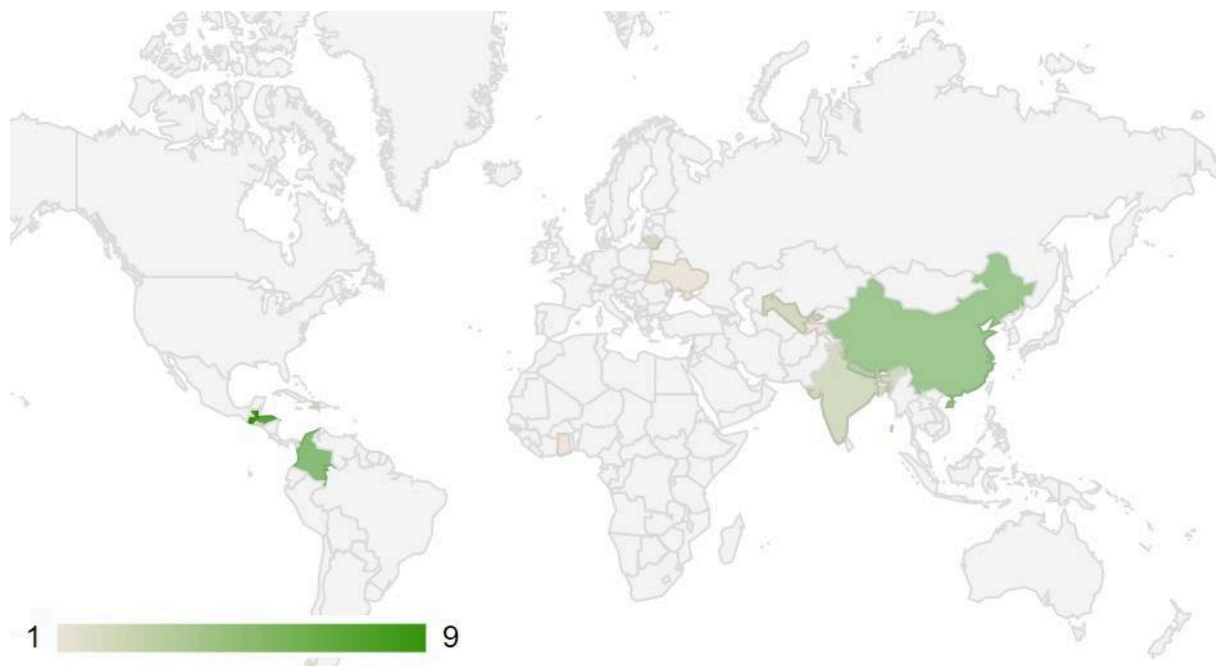
ethics compliance and data deletion requests, a copy of this dissertation, a separate file on sampling method, contextual data files and R code snippets used to generate visualizations shown throughout the paper.

3.2 Descriptive Statistics

The sample of 50 cases concerned nationals of 18 countries of origin, shown on the map below. 44% were nationals of El Salvador, Guatemala, or Honduras – also known as the Northern Triangle countries, and the high proportion is on par with trends reported by practitioners in the US.⁴⁷ On the other hand, Chinese nationals now make up a larger share of asylum approvals (and presumably applicants) than the 4 cases in the sample, though this spike is recent and not representative of the entire period between the REAL ID Act and today.⁴⁸

Figure 2: Countries of Origin

Data table available in appendix



⁴⁷Triche (n 22)

⁴⁸James Palmer, ‘Why Are More Chinese Migrants Arriving at the U.S. Southern Border?’ (Foreign Policy, 7 October 2024).

It is hard to know if this sample is truly representative because sufficiently detailed information is not available at the appellate level. The annual data reported by USCIS only covers those approved for asylum in their purview.⁴⁹ The BIA provides slightly more robust COO reporting than USCIS, but even then too little is known about who among BIA denials will continue to appeal to the Circuit Courts.⁵⁰ Given obstacles like these and the small sample size, it is not possible to confidently rule the sample as representative of asylum seekers appearing before the Circuit Courts, let alone all asylum seekers in the US. It is, however, important to highlight that perhaps due to the various COOs represented, the sample provides a diverse range of applicant contexts through which we can understand the nexus interpretation.

Even without cases from the Second Circuit and minimal applicant data available, the sample is arguably representative of how Circuit Courts adjudicate when considering outcomes. Notably, a single case can have multiple

outcomes in response to the various arguments put forward in the appeal, meaning that the total in the table on the right is higher than the number of cases in the sample. *Granted* entails a court awarding asylum, whereas *remanded* requires a case to be returned to a lower court. *Dismissals* involve an argument not being considered by the Court because of lack of jurisdiction or other

Table 2: Sample Case Outcomes

Outcome	Count
Granted	8
Remanded	5
Dismissed	5
Vacated	1
Denied	46

administrative concerns. In my sample, *dismissals* applied to specific arguments within a petition for review rather than a case as a whole – no case in my sample received a standalone dismissal. *Vacated* nullifies a previous ruling. Cases that were *denied* were heard by the Court and the Court upheld the BIA or IJ ruling, denying the asylum seeker’s petition for review. Appeals resulting in standalone denials were common, accounting for 38 out of 50 cases in my sample.

⁴⁹Office of Homeland Security Statistics, *Yearbook of Immigration Statistics* <https://ohss.dhs.gov/topics/immigration/yearbook> accessed 2 October 2024.

⁵⁰Executive Office for Immigration Review, *Asylum Decisions by Nationality* (19 July 2024) <https://www.justice.gov/eoir/media/1344846/dl?inline> accessed 2 October 2024.

Circuit Courts hear a broad range of topics, but appeals of BIA decisions account for 79% of appeals from administrative agencies. The cases in this study received a similar distribution of outcomes as in these agency proceedings. For example, 78% of Circuit Court appeals from administrative agencies were denied compared to 80% in my sample. The greatest difference between this sample and similar proceedings was proportion reversed, which in this context would be *Granted*. The Courts reversed only 6% of agency appeals generally and 16% in this study's sample.⁵¹

The sample also mirrors the delays described earlier in this paper. Only 32 of the 50 cases indicated some initial date – often referencing a Notice to Appear or an Immigration Court date. Using these 32 dates, the average amount of time between an applicant's earliest asylum action (not necessarily application, making these underestimates) and final appeal was 6.85 years. The sample included cases resolved as quickly as 1.55 years after the earliest known action and as lengthy as 17.16 years.

⁵¹Table B-5—U.S. Courts of Appeals Federal Judicial Caseload Statistics (31 March 2023) | United States Courts' <https://www.uscourts.gov/statistics/table/b-5/federal-judicial-caseload-statistics/2023/03/31> accessed 2 October 2024.

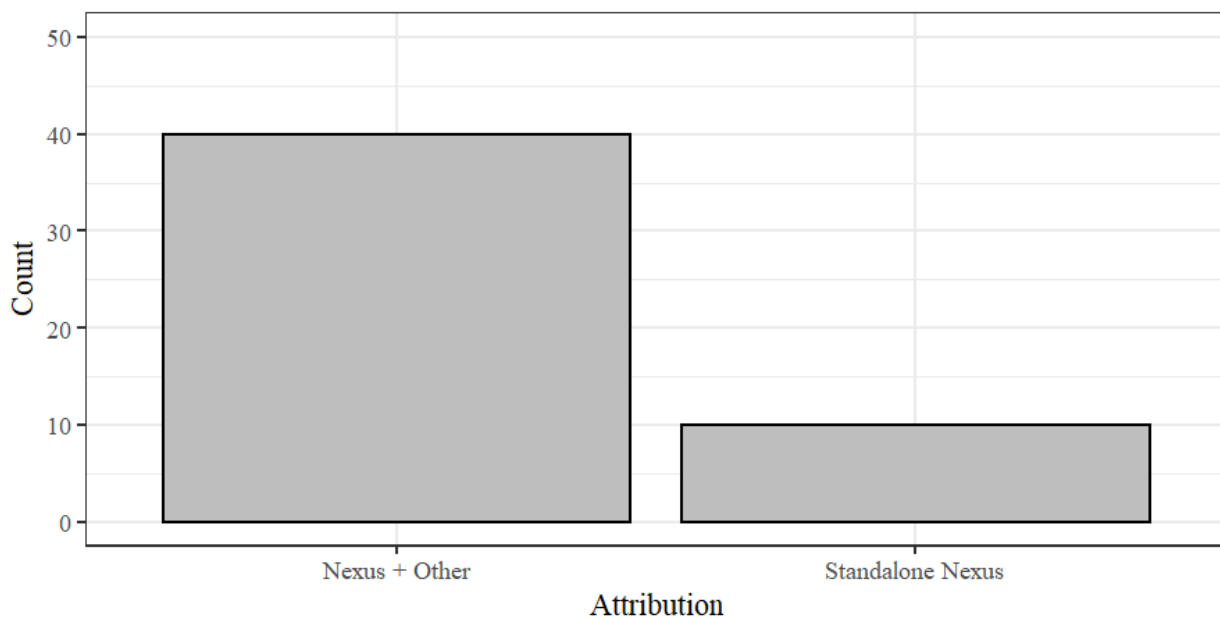
4. Results

Given that the sample appears to be representative of similar Circuit Court proceedings, albeit with more reversals than normal, we now turn to the matter of the nexus. The quantitative results of the study provide a helpful framing for the in-depth qualitative analysis.

The sample is composed of 40 cases where a nexus denial was appealed alongside other arguments and 10 cases that were appealed solely because of failing to meet the nexus requirement.

Figure 3: Role of Nexus in the Sample's Cases

Did lower courts deny the case for multiple reasons or only because of the nexus?



At first glance, it may seem like the low number of denials fully based on the nexus is a disadvantage for the study; however, this ratio itself is instructive in how the nexus requirement is interpreted. The cases denied entirely because of the nexus requirement were certainly insightful as they forced the nexus into the spotlight. Though just as valuable were the cases that involved other arguments because some trends were only clear in those circumstances. After all, the nexus requirement is what binds together the Convention ground and a well-founded fear of

persecution, so it is natural that a case failing to demonstrate the nexus requirement may face trouble with other elements.

Quantitatively, the data gleaned from the sample indicates that the nexus requirement is truly treated as an afterthought. There were just 15 cases in my sample that discussed an applicant's case sufficiently to the point where I classified them as applying a *one central reason* analysis. There is no legal definition of this analysis, which is a problem that motivates this paper and is also what made data collection challenging early on. My criteria for determining whether this analysis was performed hinged on whether the Court presented specific pieces of the applicant's evidence and discussed it. Specifically, I looked for whether the analysis linked the identity and the persecution under the *one central reason* standard or persuaded them to not find that link. For example, in *Paz Palma v Garland*, the applicant claimed asylum on account of his membership in a particular social group (PSG), "small businessmen in Honduras victimized by gang violence and extortion." Despite his PSG being a bit definitionally circular, the Circuit Court pinpointed from Paz Palma's testimony that the applicant did not experience conflict while paying the gang's monthly fee. Furthermore, the evidence showed that the gang also extorts money from other institutions like churches. Therefore, the extortion is not uniquely inflicted upon him because he is a small business owner and paying the fine would alleviate the conflict regardless. The Court cites this reasoning when denying Paz Palma on the nexus requirement; his PSG membership was not *one central reason* for the harm he experienced. The Court states Paz Palma's Convention grounds "at most were incidental or secondary reasons" for his conflict with the gang.⁵² While the outcome of the case is unfortunate for Paz Palma, the Court's analysis was sound. It used the case's facts to determine the strength of the relationship between his current situation and his Convention ground within the context of the situation.

This example is also important because it underscores that a thorough evaluation of the nexus does not necessitate a Circuit Court reversing a denial. There were 35 cases in my sample that did not benefit from any analysis of the case's *one central reason* – or sometimes any mention of a standard or case facts at all. In one example, the First Circuit called it merely "academic" in 2023 to consider whether a Convention ground can be a central reason in a mixed motive case.⁵³ Mixed motive situations – those where an applicant's harm may be attributed to

⁵²*Paz Palma v Garland* (5th Cir 2023) at 3.

⁵³*Odei v Garland* (1st Cir 2023).

both Convention and non-Convention grounds – are protected under BIA precedent.⁵⁴ They were also a driving factor of the REAL ID’s *one central reason* standard. It is perplexing for a court to be aware and capable of mentioning the *one central reason* standard by name, but not capable of performing any analysis or confoundingly applying “something altogether different” in its stead.⁵⁵

Bearing my classification requirements in mind, 70% of cases in this study failed to analyze the case facts in connection to the *one central reason* standard, if they mentioned the standard at all. The percentage was slightly higher, 77.5%, for the group whose appeal was only partially attributed to the nexus requirement, and this discrepancy will be explored a bit more in the qualitative section. These percentages indicate that the vast majority of these asylum seekers’ appeals were heard without any analysis of the case facts against the *one central reason* standard, even when failing to meet that standard was the reason for their denial. Furthermore, just 8% critically engaged with how the standard was applied by the original adjudicator.

These brief quantitative findings provide a critical framing to keep in mind regarding the study’s results: appeals involving the nexus received inconsistent levels and types of consideration. Some cases received in-depth analysis of an applicant’s nexus denial while others failed to mention the *one central reason* standard or the original adjudicator’s reasoning at all. The sample displayed a wide spectrum of consideration between these two extremes – some appeals mentioned errors in IJ understanding, some referred to the standard by name before disregarding it, and some seemed to struggle with how much analysis was permitted under the deferential standard of review. The next part of this section considers qualitative results like these, which I will present separately in two groups: substantive and procedural trends. Substantive trends pertain to the contents of the appeal and procedural trends cover how the appellate court adjudicated the case and how it did so with or without reference to the *one central reason* standard.

4.1. Substantive Trends

4.1.1. Motive and Reason

Substantively, the most common trend in the way the courts evaluated the nexus requirement – whether relating to *one central reason* or otherwise – was a conflation between

⁵⁴*Matter of S-P-* (BIA 1996) 21 I&N Dec 486; *Matter of J-B-N- & S-M-* (BIA 2007) 24 I&N Dec 208.

⁵⁵*Ghanem v Attorney General of the United States* (3rd Cir 2021).

motive and reason. For example, in *Delmar Corrales-Hernandez v U.S. Attorney General*, the Eleventh Circuit stated “[a] persecutor’s actual motive is a matter of fact to be determined by the Immigration Judge and reviewed by [the Board] for clear error.”⁵⁶ In a separate case from my study, the same circuit also ruled that considering the persecutor’s *reasons* involves the applicant providing evidence of his persecutor’s *motives*.⁵⁷ These approaches conflate the ideas of motive and reason.

As previously mentioned in the Literature Review, motive has been deemed an inappropriate way to evaluate the nexus requirement explicitly in scholarship and implicitly in the US jurisdiction via Congress’s language in the REAL ID Act. Yet, the courts still consider the persecutor’s motives to be a core component of the analysis; precedential case law at the BIA level requires it: “[w]hether that nexus [to a protected ground] exists depends on the views and motives of the persecutor.”⁵⁸ There were clear instances in my sample where this requirement seemed to present the applicant with an impossible task. For example, the applicant in *Jorge Flores-Benedict v Merrick Garland* was denied in part because of a negative nexus determination. The lower courts found that he failed to prove he was harassed on account of his Garifuna ethnic identity; more specifically, the courts found that he failed to disprove the harassment stemmed from reasons other than his ethnicity. He credibly testified that he and others in his ethnic group were regularly stopped and inspected without cause while non-Garifuna individuals were not. The IJ had found that these instances were not tied to his ethnic identity because Jorge Flores-Benedict could not prove that these stops were not merely due to other circumstances. Upon appeal to the Circuit Court, Jorge Flores-Benedict argued that these instances were not properly contextualized, and the examiner must consider “the context of racial violence” against the Garifuna. While the Court hung the case’s hat on harm not rising to the level of *persecution*, Jorge Flores-Benedict makes a convincing argument in his nexus appeal. The Circuit Court agreed that the nexus appeal might have been persuasive if it sufficiently demonstrated a pattern of persecution against the Garifuna. The IJ had been so focused on isolating the motive of the police that they did not fully consider the case’s nexus requirement outside of motive. Instead, the IJ treated motive as completely synonymous with

⁵⁶*Delmar Corrales-Hernandez v US Attorney General* (11th Cir 2020).

⁵⁷*NS v Elias-Zacarias* 502 US 478 (1992) in *Jose Angel-Lopez v US Attorney General* (11th Cir 2021).

⁵⁸*Matter of NM-* (BIA 2011) 25 I&N Dec 526, 532; also see *Matter of W-G-R-* (BIA 2014) 26 I&N Dec 208, 223–24.

reason and placed an arguably impossible burden on the applicant which was not reconsidered until the case's final appeal before the Circuit Court.

4.1.2. Animus in Family Group PSGs

Membership in a particular social group (PSG) was the most common Convention ground put forward by applicants in my sample. Unfortunately, the fixation on motive sometimes morphed into a need to see animus, or “prejudiced and often spiteful or malevolent ill will” to satisfy the nexus requirement in cases involving PSGs.⁵⁹ Animus goes a step further than looking at motive alone, and this elevated understanding of motive especially seemed to apply to applicants from Latin American countries claiming membership in their family as their PSG.⁶⁰ It is difficult to say whether these individuals faced higher levels of scrutiny because of the “surge” in asylum seekers from these countries in recent years or the nature of the proposed PSG.⁶¹ Regardless of the source, one case's reasoning that particularly exemplified this trend is *Alicia Naranjo Garcia v Robert Wilkinson*. Garcia's claim to asylum is based on her membership in her family. A local gang murdered her husband, made threats to her life, and forcibly took possession of her house after she helped her son escape the gang's recruitment. The Ninth Circuit stated, “there is a fine line between showing ‘animus’ toward family, which does establish nexus, and ‘purely personal retribution,’ which does not.”⁶² In this particular case, the Court went on to determine that the persecutor's timing and language in the applicant's testimony established evidence of motive beyond personal retribution.

Case outcome aside, this reading of the nexus requires applicants to go beyond the *one central reason* standard by also demonstrating the negative intentions of the persecutor. The Michigan Guidelines explicitly condemn requiring animus because it is misaligned with the Refugee Convention's intention; persecution can occur even “in the absence of any evidence of intention to harm.”⁶³ Though just as the role of motive was firmly entrenched in case law in the US, the Ninth Circuit's “fine line” stems from the 2021 regulatory changes mentioned earlier in this paper. The regulation prohibits asylum from being awarded in situations of persecution

⁵⁹Definition of ANIMUS' (Merriam-Webster, 30 September 2024)
<https://www.merriam-webster.com/dictionary/animus> accessed 2 October 2024.

⁶⁰*Delmar Corrales-Hernandez v US Attorney General* (11th Cir 2020).

⁶¹Triche (n 22)

⁶²*Alicia Naranjo Garcia v Robert Wilkinson* (9th Cir 2021).

⁶³Michigan Guidelines (n 15)

stemming from interpersonal animus, wealth or the perception of wealth, and gang recruitment among others.⁶⁴ With this regulation in mind, the timeline of Alicia Naranjo Garcia's case is important to note because she first appeared in Immigration Court in 2018. She was expected to provide evidence of animus three years prior to the regulation. In other words, she was held to an IJ's artificially stringent reading of the nexus requirement in Immigration Court.

Not every applicant was able to demonstrate a qualifying animus as well as Alicia Naranjo Garcia. Several cases were denied because the root of a family unit's persecution was deemed to be wealth or perceived wealth.⁶⁵ At least one of these cases, *Juana Hernandez-Garcia, et al v William P. Barr*, also suffered at the hands of an IJ's incorrect nexus reasoning: the IJ used the persecutor's goals as a proxy for both reason and motive. The IJ denied the case because "[g]angs can raise money in all sorts of ways, some with a nexus to a particular social group and some without such a link, but all for the same goal."⁶⁶ The Seventh Circuit determined using goals as a proxy for nexus was too extreme, and that the real question to be determined was in "which category does the persecution Hernandez-Garcia experienced fall: nexus, random, or ubiquitous?" The Court is right to push back on the IJ's interpretation of the nexus requirement and within its right to apply its own schema to the nexus; however, the Court does not mention the *one central reason* standard at all. Appeals that address a legitimate misapplication without mentioning the *one central standard* demonstrate a pervasive lack of consistency. Applicants claiming membership in a family unit as a PSG are perhaps more exposed to this inconsistency due to the regulation and preexisting tendencies for IJs to screen for interpersonal animus.

4.1.3. Legally Incompatible PSGs

Requiring certain PSG applicants to demonstrate animus is inextricably linked to a different trend: several of these cases were relying on PSGs that were completely legally disallowed. The US jurisdiction guards against "catch-all" categories within PSGs, like 'women' or 'Guatemalans' and yet some petitioners use these exact social groups.⁶⁷ Applicants relying on these expansive PSGs faced a losing battle; they are unfortunately destined to be denied. At the

⁶⁴8 CFR 208.1(f); See entry 2 of the Appendix for complete list.

⁶⁵*Kelly Sanchez-Castro v US Attorney General* (11th Cir 2021); *Cristian Lopez-Arevalo v US Attorney General* (11th Cir 2018); *Juana Hernandez-Garcia v William P Barr* (7th Cir 2019); also see *Matter of L-E-A-* (BIA 2017) 27 I & N Dec.

⁶⁶*Juana Hernandez-Garcia v William P Barr* (7th Cir 2019).

⁶⁷ See "women in Guinea-Bissau" in *Panicia Da Silva v US Attorney General* (11th Cir 2012).

same time, there are applicants in similar (if not identical) circumstances who framed their group to be more specific and were more likely to see reversals upon appeal.⁶⁸ The difference between the two groups is likely that of counsel during Immigration Court. Unfortunately, regardless of whether they benefited from counsel at that time, applicants must retain their PSG throughout an appeal.⁶⁹

The overarching substantive trend being displayed through both PSG-related trends is the lingering consequences of an Immigration Court hearing. Despite often initially claiming asylum with USCIS, these hearings are where the legal journey truly begins for an asylum seeker. It is at this stage where the evidence is put forward by the applicant and translated into case facts by the IJ, ex. any PSGs and how the nexus requirement is satisfied. The process is adversarial and high stakes due to the nature of asylum – these individuals fear persecution upon their return and are often recounting the worst experiences of their lives. There are documented cases of both applicants and judges being affected by the stress.⁷⁰

Emotional toll aside, the IJ's fact-finding rationale in the case is tremendously important, not only because of the outcome in Immigration Court but because they follow an applicant through any appeals. This legal limitation will be revisited shortly in a procedural trend, yet it is important to note that fact-finding is a unique task undertaken by the IJ. An applicant does have the right to appeal a denial to the BIA and subsequently the Circuit Courts; however, they cannot appeal facts found by the IJ as easily. Unfortunately, there is significant variance in how individual judges rule and existing scholarship shows strong trends of adjudicator bias, especially as the rise of anti-immigrant sentiment has led to the politicization of asylum in the US.⁷¹

⁶⁸ See role of family in *Alicia Naranjo Garcia v Robert Wilkinson* (9th Cir 2021).

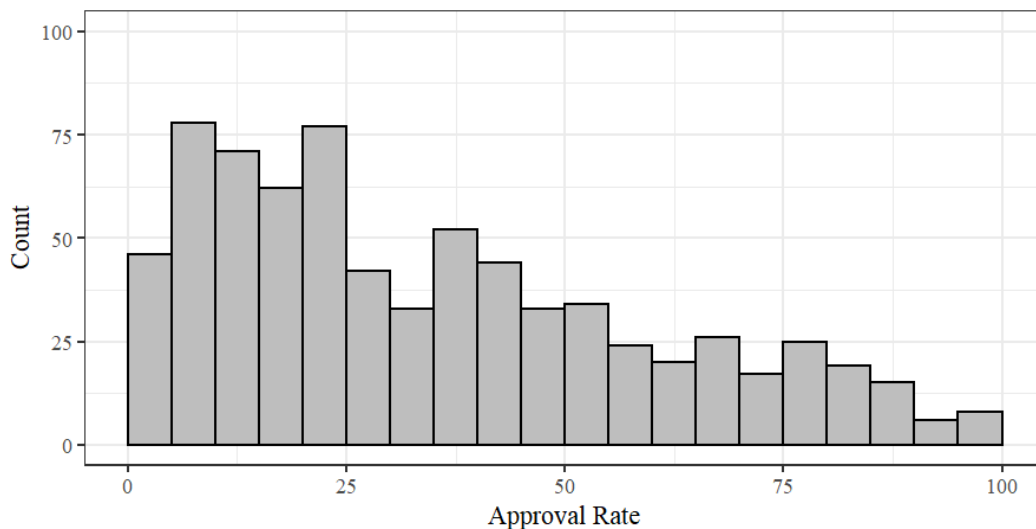
⁶⁹ *Matter of W-Y-C- & H-O-B* (BIA 2018) 27 I&N Dec 189.

⁷⁰ See IJ reactions mentioned in *Meng Zhao v Attorney General* (3rd Cir 2012).

⁷¹ Caitlin Dickerson, 'How U.S. Immigration Judges Battle Their Own Prejudice' *The New York Times* (4 October 2016) <https://www.nytimes.com/2016/10/05/us/us-immigration-judges-bias.html> accessed 2 October 2024; Fatma Marouf, "Implicit Bias and Immigration Courts" (2011) 45 *New Eng. L. Rev.* 417.

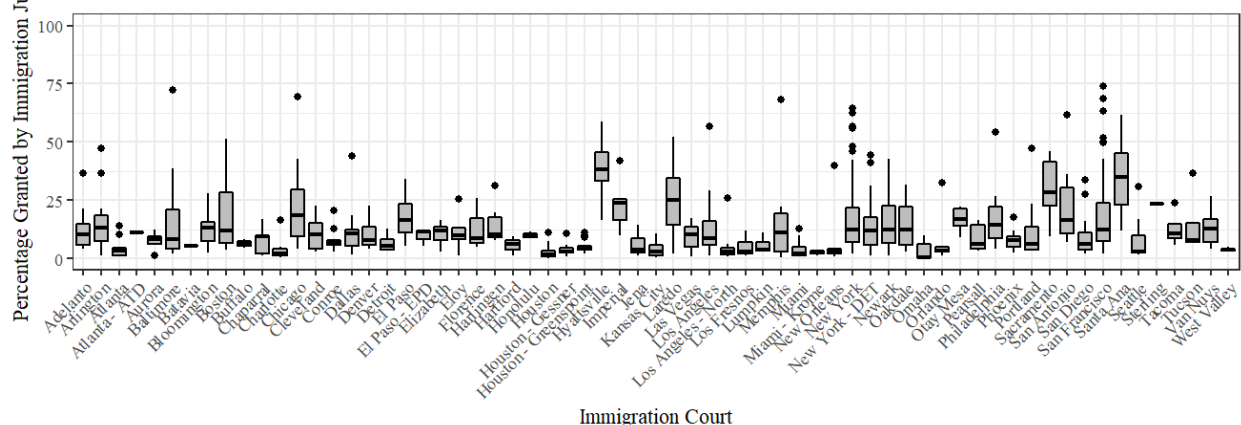
Between FY 2018 - 2023, over 40 judges granted asylum in less than 5% of cases as seen in Figure 4. Do these IJs serve populations more prone to unsuccessful asylum cases or could these have been the adjudicators applying arbitrarily stringent nexus requirements against Alicia Naranjo Garcia and Juana Hernandez-Garcia?

Figure 4: Asylum Granted by Immigration Judge
Each IJ's individual approval rate. TRAC data FY 2018 - 2023



The structure of Immigration Court holds the probable answer. IJs are clustered into 68 courts and 3 adjudication centers across the US.⁷² The distribution of how frequently IJs within each location award asylum is shown in Figure 5.

Figure 5: Percentage of Cases Granted Asylum
TRAC data FY 2018 - 2023



⁷²Executive Office for Immigration Review, *Office of the Chief Immigration Judge* (13 January 2015) <https://www.justice.gov/eoir/office-of-the-chief-immigration-judge> accessed 2 October 2024.

Each segment of a box plot represents 25% of their adjudicators and the single dots are outliers who approve asylum at significantly different rates than their peers at the same location. It is important to note that some of the box plots do not overlap with others meaning that the location's judges adjudicate significantly differently than their counterparts in other courts. Some locations like Hyattsville trend towards more positive determinations and more than a few trend towards lower approval rates, substantiating the claim that different areas serve different populations. Low-approval judges appear to be spread across multiple locations, ex. Aurora, Charlotte, Houston, Kansas City, Miami, and West Valley but the clustered behavior for these sites indicates that these locations adjudicate relatively consistently. A converse takeaway – and the one relevant to Alicia Naranjo Garcia and Juana Hernandez-Garcia – is the presence of strong variance within certain individual locations. IJs in the same court should not produce approval disparities like the ones observed in New York or San Francisco. The spread observed in these locations shows that individual IJs rulings can significantly differ from their peers when presumably adjudicating similar caseloads. It is therefore very possible that malicious or simply inexperienced IJs are systematically denying applicants under the guise of incorrect nexus interpretations.

Before returning to the results of the study, it is important to emphasize that these approval rates illustrate where things began to go wrong for applicants like Alicia Naranjo Garcia and Juana Hernandez-Garcia. The variance in IJ approval rates indicates that unfortunately, all else held constant, an applicant's likelihood of being equipped with adequate fact-finding and held to legitimate nexus requirements may hinge on the administrative task of case assignment.

4.2. Procedural Trends

The importance of the case facts transitions the paper's focus from substantive to procedural trends gleaned from the sample. This section focuses on how the *one central reason* standard was used, or not, and what legal procedures or practices interacted with the nexus appeals overall.

4.2.1. Jurisdiction to Review

Closely related to an applicant's inability to change their PSG during an appeal is how an appellate court handles new evidence and arguments. There are clever ways that an applicant can frame new arguments as support for existing nexus claims, but once an appeal is presented, the court must decide if the arguments are permissible.⁷³ Generally speaking, applicants are unable to introduce new content during their appeals because the appeal's purpose is to confirm the lower court's decision was satisfactory, not to reargue the points.

Circuit Courts specifically lack jurisdiction to review unless the applicant has exhausted all other administrative remedies.⁷⁴ In my study, the Circuit Court lacked jurisdiction to review several times when applicants presented new information that was not heard before the BIA, meaning that they had not exhausted their administrative remedies. For example, in *Alexander Gutierrez-Jose, et al v U.S. Attorney General*, the Eleventh Circuit noted that “although Mr. Gutierrez argues on appeal that the BIA failed to take into account economic deprivation as a form of persecution, he did not make that argument to the BIA and, thus, failed to exhaust that particular contention.” That being said, if the current court believes that the argument will make a difference, they will remand the case back to the appropriate lower court. There were 5 remands in my sample. A 10% remand rate for these nexus cases is markedly higher than that of .03-6.9% for BIA appeals observed during 2016-2018 and 5% in 2023 for agency appeals generally.⁷⁵ However, there was a lot of variance in how the Circuit Courts behaved when lacking jurisdiction to review. In *Alexander Gutierrez-Jose's* case, for example, the Court ultimately ignored the new argument put forward and their previous statement quoted above to conclude “that Mr. Gutierrez administratively exhausted his claims” and denied his petition.⁷⁶

⁷³ “[a] party can make any argument in support of that claim; parties are not limited to the precise arguments they made below” in *Yee v Escondido* 503 US 519 (1992).

⁷⁴ INA § 242(d)(1).

⁷⁵ Most recent BIA-specific data: Congressional Research Service, US Immigration Courts and the Pending Cases Backlog, 25 April 2022, <<https://crsreports.congress.gov/product/pdf/R/R47077>> accessed 2 October 2024; Andrew Arthur, *Statistics Show Increased Circuit Court Approval of BIA Decisions* (Center for Immigration Studies, 18 May 2020)

<https://cis.org/Arthur/Statistics-Show-Increased-Circuit-Court-Approval-BIA-Decisions> accessed 5 October 2024; Table B-5—U.S. Courts of Appeals Federal Judicial Caseload Statistics (n 51)

⁷⁶ *Alexander Gutierrez-Jose v US Attorney General* (11th Cir 2021).

4.2.2. Weaponized Role of Circumstantial Evidence

Among cases that did include a *one central reason* analysis, circumstantial evidence was largely only mentioned in appeals where it was used to justify a denial. Circumstantial evidence in asylum cases helps demonstrate how individuals with the same Convention ground are treated.⁷⁷ Common types include government or NGO-led reports of country conditions, scholarship, and news articles.

A particularly helpful example of this trend is *Silva v U.S. Attorney General*, which is not a case from my sample but is cited in sample case *Nelida Ramirez Mendez, et al v U.S. Attorney General*. Silva was working on a political campaign when she began receiving death threats and was shot at while driving, receiving subsequent phone calls saying the assailants would not miss again. The Eleventh Circuit stated that "we could not say the shooting was 'indisputably related' to her political activity" because the evidence the appellant provided demonstrated such a high level of violence in Guatemala. This line of reasoning begs the question: is anyone in Guatemala capable of meeting the refugee definition? Of course. The Michigan Guidelines speak to this topic specifically: fleeing a country experiencing large-scale violence does not prevent someone from being a refugee if their Convention ground contributes to their well-founded fear.⁷⁸ In cases like *Silva v U.S. Attorney General*, the circumstantial evidence seemed to be weaponized in that it was used to negate the possibility that the persecution was on account of the nexus.⁷⁹

In another example, the applicant in *Sarkisian v Atty Gen* fled human trafficking in Armenia and brought a human trafficking expert in to provide additional testimony. The expert voiced deep concern about the risk of re-trafficking in Armenia and the lack of training among the local police forces, which bolstered the facts presented in the applicant's testimony. Yet the Circuit ultimately upheld the BIA's ruling that there was insufficient evidence that her assailants would continue to target her on account of her Convention ground. This example joins Silva's in illuminating the point: greater discussion of circumstantial evidence seemed to be correlated with denials. There are several possible explanations, but this trend will be revisited more thoroughly in the Discussion section.

⁷⁷*Matter of S-P-* (BIA 1996) 21 I&N Dec 486.

⁷⁸ Michigan Guidelines (n 15)

⁷⁹*Juana Hernandez-Garcia v William P Barr* (7th Cir 2019).

4.2.3. Depth of Reviews

Contrary to the previous trend, appeals lacking any case-specific evidence – direct or circumstantial – appeared also to disproportionately result in nexus appeals being denied. Some cases received significantly more thorough reviews than others. To some extent, this seemed to be related to what circuit adjudicated a case. The Fourth Circuit (serving West Virginia, Virginia, North Carolina, and South Carolina) tended to omit case-specific analysis from its non-precedential appeals and simply alluded to “sufficient” or “substantial” evidence when affirming a BIA decision. Some cases were so lacking in substance that I debated removing them from the sample; however, that would be incorrect seeing as they met all other criteria and the lack of analysis is insightful alone.⁸⁰ One such example is *Jean Lorisson v Michael Mukasey*, reproduced in the appendix to illustrate the brevity.

At face value, it would be tempting to explain this trend as certain circuits not treating appeals based on the nexus requirement with appropriate attention. Though, when the Court’s analyses include no case-specific content, it is impossible to determine what caused the disregard.

Cases denied only in part because of the nexus requirement also faced an additional risk when it came to thoroughness. The nexus ties together other elements of the refugee criteria. Appeals involving one or more other elements did not always discuss the role of the nexus. If they found that the presence of persecution or legitimacy of the grounds is sufficient for denial, then the nexus becomes extraneous because it rests on the validity of the other elements.⁸¹ Some cases still addressed the nexus, but most did not in this situation.

4.2.4. Substantial Evidence Standard

The most jarring procedural trend and one related to many other previously discussed trends was the role and prevalence of the substantial evidence standard. This standard defines how Circuit Courts are permitted to review case facts: “[t]o reverse administrative factual findings, we must determine that the record ‘compels’ reversal, not merely supports a different conclusion... [T]he mere fact that the record may support a contrary conclusion is not enough to

⁸⁰*Jean Lorisson v Michael Mukasey* (4th Cir 2008); *Jia Weng v Eric Holder* (4th Cir 2012).

⁸¹For example, see role of applicant’s particular social group in *Enrique Mejia Chavez v US Attorney General* (11th Cir 2014).

justify a reversal of the [agency's] findings.”⁸² All cases include a paraphrase of the following: “We decide purely legal questions *de novo*, but agency findings of fact are reviewed under the substantial evidence standard” where agency refers to the position held by the BIA in the previous appeal. Whether an applicant establishes a nexus is seen as a finding of fact and therefore not subject to *de novo* consideration. This particular trend was so pervasive and legally complex that it merits a separate discussion in the next section, but its significance will be explained here.

It is instructive to begin with situations that might end differently if the Courts demonstrated less ‘deference.’ For example, in *Stepan Lepetiuk v U.S. Attorney General*, Lepetiuk fled after receiving threats, being run off the road, robbed at home, and stabbed for investigating the then-Chairman of Ukraine’s Parliament’s role in inciting riots. This investigation was part of his employment. He continued his work despite being repeatedly asked by his superiors to stop, and the intimidation caused all others on the project to quit. Unfortunately, the BIA and IJ ruled that the nexus was not demonstrated; they found Lepetiuk’s persecution was a product of someone doing their job as an investigator, albeit a dedicated one. The Eleventh Circuit seemed to be interested in entertaining whether the applicant demonstrated an imputed political opinion by disobeying his superiors, calling it a “closer question” for the nexus. Yet “under the substantial evidence test, [they] dr[e]w all reasonable inferences in favor of the BIA’s decision” and upheld the denial.⁸³

Similarly, the applicant in *Radjabov v Holder, Jr.* is the son of an assassinated pro-democracy political leader in Tajikistan. Following his father’s assassination, he was beaten and threatened with a knife, his house was set on fire with gasoline, mugged and called ethnic slurs in front of police officers by Tajik nationalists, publicly harassed for dating a Tajik woman, and his brother disappeared. The IJ found that the nexus was not established because each instance could be attributed to other non-Convention grounds. The First Circuit describes this analysis to be “troubling.” The tone of the First Circuit’s analysis was regretful of the ruling and defeated by the standard of review they are permitted: they emphasized that “the stringency of the standard of review matters greatly” in their decision to deny Radjabov’s appeal. The

⁸²*Adefemi v Ashcroft* (11th Cir 2004) 386 F.3d 1022, 1026–27 in *Delmar Corrales-Hernandez v US Attorney General* (11th Cir 2020).

⁸³*Stepan Lepetiuk v US Attorney General* (11th Cir 2019); see also *Diallo v US Attorney General* (11th Cir 2010) at 1332.

substantial evidence standard has an immeasurable impact on applicants like Radjabov. That impact, amplified by the First Circuit's regretful analysis, brings the study's findings to a close: there are tremendous inconsistencies in how the *one central reason* standard is understood in the US, yet Circuit Courts are not at will to rectify every misunderstanding on appeal because of judicial processes.

5. Discussion

Many of these substantive and procedural obstacles can be best understood as byproducts of an incompatible interaction between the *one central reason* standard and the substantial evidence standard of review just mentioned. This section begins by exploring both standards in detail a final time before explaining their incompatibility and arguing in favor of a way to bridge the space between them.

5.1. Standard of Proof: *One Central Reason*

An applicant's standard of proof is the "level of certainty and the degree of evidence necessary to establish proof."⁸⁴ Common standards of proof in the US are *preponderance of the evidence*, *clear and convincing*, and *beyond reasonable doubt*, but the standards vary based on the jurisdiction and type of proceeding.⁸⁵ The REAL ID Act of 2005 placed the *one central reason* standard on the nexus requirement, meaning that asylum applicants must produce enough evidence linking the Convention ground and persecution to substantiate that relationship's strength. It is uncommon to explicitly refer to the *one central reason* standard as a standard of proof, but in practice, it is essentially that. The applicant presents evidence to the Immigration Judge, who determines whether the applicant has satisfied their burden of proof to the appropriate standard and therefore established a fact in the case. Standards requiring a higher degree of evidence, like *sole cause* in the nexus context, necessitate more evidence to substantiate a stronger relationship between the nexus and the persecution. Subsequently, this paper will refer to the *one central reason* standard as a standard of proof. My sample was, therefore, composed of cases where the Immigration Judge found that the applicant did not satisfy their standard of proof for the nexus requirement.

5.2. Standard of Review: Substantial Evidence

When matters of fact-finding are appealed to the Circuit Courts, they are held to the substantial evidence standard. This standard means that the appellate court is evaluating whether the earlier findings included sufficient evidence for the previous adjudicators to reasonably have

⁸⁴Legal Definition of STANDARD OF PROOF' (Merriam-Webster) <https://www.merriam-webster.com/dictionary/test> accessed 2 October 2024.

⁸⁵'Burden of Proof' (LII / Legal Information Institute) https://www.law.cornell.edu/wex/burden_of_proof accessed 2 October 2024.

arrived at their conclusion. In other words, as shown in many of the cases here, the appellate courts may not have agreed with the nexus denial, but there was sufficient evidence presented to arrive at that previous adjudicator's conclusion. The previous adjudicator in this context was the BIA. The substantial evidence standard of review requires the Court to view the evidence in the light most favorable to the BIA's decision, draw all reasonable inferences in favor of that decision, and overall affirms the BIA's decision "if it is supported by reasonable, substantial, and probative evidence on the record considered as a whole."⁸⁶ These BIA decisions rarely include oral hearings and in most situations are adjudicated by a one-member panel reviewing the IJ's decision. In fact, most BIA appeals end with the BIA affirming the IJ's findings without written opinion.⁸⁷ So in most cases, the appellate court is reviewing the IJ's decision directly under this deferential standard.

5.3 Incompatibility

Based on the cases in this study, appellate courts cling to this substantial evidence standard of review as though it absolves them of addressing the standard of proof relevant to the argument. The courts were often very quick to note that "substantial" evidence supports the decision, rather than revisit whether the original adjudicator correctly determined if an applicant met their standard of proof. Whether a standard of proof should truly "disappear" under the appellate standard of review is a complex debate that transcends asylum law; it extends to all types of proceedings heard by the appellate courts, like torts or criminal cases.⁸⁸

To highlight the significance of the misalignment, consider what might happen if the US used a more stringent standard of proof for asylum, perhaps the *sole cause* standard. The content of resulting appellate cases would remain unchanged for the Courts presently disinterested in including an analysis, even though the legal requirement has changed. Under this standard, the Convention grounds would need to be exclusively responsible for the harm experienced by the applicant, and the evidence submitted would need to substantiate this connection. There is no textual evidence to suggest changing the standard of proof like this would lead to any difference in appeal: the Courts exclusively citing "substantial" or "sufficient" evidence would arguably

⁸⁶*Perez-Zenteno v US Attorney General* (11th Cir 2019); see also *INS v Elias-Zacarias* 502 US 478 (1992).

⁸⁷Board of Immigration Appeals (n 13)

⁸⁸Alexander EA, 'Sufficiency of the Evidence: The Burden of Proof Does Not "Disappear" on Appeal' (Appellate Defenders 2023).

continue to do so. Furthermore, the outcomes of these cases would also be unlikely to change if the substantial evidence standard is applied to nexus denials untethered to any standard of proof. The adjudicator is looking for evidence to affirm the negative finding. If any country context demonstrating broadstroke instability or violence had been submitted to the record, it seems unlikely a Circuit Court judge would find the record compels reversal.

Therefore, the relationship between the standard of review and the standard of proof can explain the substantive trend noted in my study where certain kinds of evidence were used against applicants. Under the substantial evidence standard, those circumstantial pieces of evidence were the elements of the record that established the nexus denial as reasonable. Considering country conditions research is an integral component of asylum in the US,⁸⁹ it seems improbable that a nexus appeal from a national of a violent country is capable of overcoming the substantial evidence standard of review. The Circuit Court will find, like they did in *Silva v U.S. Attorney General*, that the persecution one has experienced or would endure in the future is not ‘indisputably’ tied to their Convention grounds.

This disconnected approach has thus far been permitted and is in line with the relationship between the BIA and Circuit Courts. The BIA is responsible for interpreting the law and therefore receives deference from the Circuit Court on matters of legal interpretation, like determining what constitutes *one central reason*. The Circuit Courts are paradoxically expected to uphold that relationship while fulfilling their purpose: ensure “the proceedings were fair and that the proper law was applied correctly.”⁹⁰ This relationship exists between all administrative agencies and the Circuit Courts but is especially challenging here because the BIA often lacks the legal specialization to interpret issues of refugee status and asylum.⁹¹ The Eleventh Circuit has found BIA rulings to be so “lacking in reasoned consideration and explanation that meaningful review was impossible” and similarly “fundamentally incomplete that a review of legal and factual determinations would be quixotic.”⁹² It is understandable the Courts sometimes feel called to push the limits of their deference, especially in matters that draw so heavily on

⁸⁹Executive Office for Immigration Review, *Country Conditions Research*, 9 March 2015 <https://www.justice.gov/eoir/country-conditions-research> accessed 2 October 2024.

⁹⁰About the U.S. Courts of Appeals | United States Courts' <https://www.uscourts.gov/about-federal-courts/court-role-and-structure/about-us-courts-appeals> accessed 2 October 2024.

⁹¹Ibid; Shelley M. Hall, 'Quixotic Attempt - The Ninth Circuit, The BIA, and the Search for a Human Rights Framework to Asylum Law' (1998) 73 Wash L Rev 105.

⁹²*Indrawati v US Attorney General* (11th Cir 2015).

international law. The Ninth Circuit is particularly known for clashing with the BIA over the interpretation of human rights issues.⁹³ In *Li v Ashcroft*, they stated that “[w]hile this standard [of review] is deferential, ‘deference does not mean blindness.’⁹⁴

So while there is some ‘bite’ to the standard of review in extreme cases – there were reversals and remands in the sample, after all – it does not address the fact that courts are largely permitted to ignore the applicant’s *one central reason* standard of proof when reviewing nexus denials. Courts are not all equally perceptive or progressive. If anything, the Ninth and Eleventh Courts’ sentiments above seem to insinuate that the few *one central reason* analyses observed in my study were reserved for those more egregious oversights. However, many cases that received *one central reason* analyses still resulted in dismissals and denials, and many strong analyses were formed without mentioning the *one central reason* standard. Why did our pro-democracy Tajik case, *Radjabov v Holder, Jr*, not benefit from his *one central reason* standard being revisited? Seeing no other explanation, I am inclined to find that the references to the applicant’s standard of proof were effectively random or perhaps tied to the quality of the BIA or IJ’s analysis. The question at hand is if overlooking this standard at the appellate level is justified.

Whether ignoring that standard of proof at the appellate level is ethically permissible in criminal and civil proceedings is outside the scope of this paper; however, it is inappropriate in asylum proceedings. Asylum is unique in that fact-finding extends to future actions when applicants are unable to satisfy requirements via past persecution, making fact-finding an even more challenging exercise. Applicants are required to produce evidence that demonstrates a ‘central’ connection between their Convention ground and persecution that has not yet happened. Logically, there may be less evidence available to substantiate the nexus in cases focusing on future persecution. I worry the nexus arguments in these cases with less access to evidence are more easily overtaken by country conditions during the initial Immigration Court ruling and upheld under the appellate standard of review. The burden placed on these cases becomes exponentially harder when considering the continued prevalence of ‘motive’ in the US jurisdiction. As mentioned in the Results section, motive is problematic generally because the persecutor is not present for the proceedings, so their word, actions, or proximate evidence must be used to infer those motives. These inferences are already challenging as they relate to past

⁹³Hall (n 91)

⁹⁴*Parada v Sessions* (9th Cir 2018), quoting *Li v Ashcroft* (9th Cir 2004).

persecution, and would be arguably impossible to procure for many situations involving fear of future persecution. These cases therefore face a heightened risk of an Immigration Judge citing country conditions to deny a legitimate asylum claim that is then nearly impossible to reverse under the substantial evidence standard of review.

This risk underscores the true impact of the previously discussed inconsistencies in Immigration Court asylum proceedings. Whether due to biases or ineptitude, IJs have ample material to deny on nexus grounds if they are inclined to do so: general country conditions, testimonial flaws, or being dissatisfied with the available evidence. The likelihood of overly sensitive nexus denials at this stage may be relatively high considering how frequently Circuit Courts indicated they would have decided differently in my sample.

Ultimately, considering the original standard of proof from appellate reviews in asylum cases is fundamentally different than in other types of proceedings heard before the Circuit Courts. In addition to initial rulings being prone to error for the above reasons, the result of an IJ being overly stringent for the nexus requirement also has dramatically more severe consequences than the same outcomes in criminal and civil proceedings. One IJ with this proclivity may result in hundreds of applicants being *refouled* who would have otherwise had a valid claim to asylum.

5.4. The Way Forward

To provide asylum applicants with a sound appeals process, the dissonance between an applicant's *one central reason* standard of proof and the appellate standard of review must be resolved. The simplest solution would be to adjust the appellate standard of review to connect the substantial evidence standard to the original standard of proof. However, considering the implications to other areas of law, this solution is simply not viable. It would require a systemic change to the judicial process that presides over all types of cases heard before the appellate courts. Therefore, the most actionable way to adjust the process would be to standardize how the *one central reason* standard is operationalized. Other areas of law have underscored the importance of establishing standardized tests for causality to minimize adjudicator variance in such a pivotal but opaque act of fact-finding.⁹⁵ A 'test' is defined as 'the procedure of submitting a statement to such conditions or operations as will lead to its proof or disproof or to its

⁹⁵Foster (n 32)

acceptance or rejection.⁹⁶ In its current state, evaluating an applicant's nexus criteria under the *one central reason* standard involves no 'test', i.e. no consistent conditions or operations are applied by the courts. I argue that applying Foster's *predicament approach* as a test for the *one central reason* standard will prevent much of the tension observed under the appellate standard of review by obtaining more consistent results.

The *predicament approach* was discussed during the Literature Review, but in brief: it focuses on the objective circumstances, or predicament, of the applicant and looks at why the applicant was or would be exposed to the risk of persecution. Utilizing the *predicament approach* would entail an applicant using evidence to prove that their Convention ground increases their risk of persecution, rather than the persecutor's motives. Phrased differently, the approach shifts the nexus from "*why is the persecutor persecuting the applicant?*" to "*why is the applicant being persecuted?*"

This approach can be used to supplement the *one central reason* standard when applied correctly. Arguably, if an applicant can substantiate the claim that their Convention ground significantly increases their risk of persecution, then that Convention ground would be considered a central reason for that well-founded fear of persecution. The key word here is 'significantly.' Foster and Hathaway have discussed the *predicament approach* separately from that of tests that quantify the nexus requirement,⁹⁷ but I argue that the *predicament approach* can be used to meet various standards of proof based on the magnitude of the increased risk attributed to the identity. To satisfy the *one central reason* standard, the word 'significantly' enables the same previously discussed precedents to apply. In other words, the increase in risk should not be "incidental" but also need not constitute the totality of the risk.⁹⁸ In positive determinations, the increase in risk will demonstrate that the applicant's Convention ground puts them at a significantly higher risk than individuals without that identity. In negative determinations, the difference in risk injected by the Convention ground is insignificant, or marginal at most.

⁹⁶Definition of TEST' (Merriam-Webster, 23 September 2024)
<https://www.merriam-webster.com/dictionary/test> accessed 2 October 2024.

⁹⁷Hathaway and Foster (n 23) p. 376-390.

⁹⁸*Parussimova v Mukasey* (9th Cir 2009) 741; see also *Orellana-Recinos v Garland* (10th Cir 2021); *Quinteros-Mendoza v Holder* (4th Cir 2009).

To illustrate how this approach may work in practice, we will consider a simplified fictional case inspired by many in my sample: A national of Honduras, Jose Miralda,⁹⁹ is seeking asylum on account of his membership in a particular social group made up of his family. Specifically, he is claiming a subgroup formed of immediate family members of his late brother, Angel Miralda. Angel held a moderate role in regional politics and was well-liked until his assassination during the last election cycle in 2020. Shortly after his death, Jose and his parents began receiving calls threatening their lives, saying they would join Angel soon. Rocks have been thrown into Jose's house and he was shot at while driving home from work. The family has relocated several times but continues to face the same problems. Jose fled to the US shortly after the incident of gun violence. The case record includes Jose's credible testimony of these events, information about Angel's life and death, and country conditions for Honduras describing violent regional political trends and gang violence.

Applying the *predicament approach* to Jose's case might look like this:

1. *Why is Jose receiving threats to his life, being repeatedly harassed, and being shot at while coming home from work?*
 - The timing of the calls, harassment, and assault align with the assassination of Angel
 - The threats are directly aimed only at immediate family members of Angel
 - The threats and harassment are persistent and have escalated despite the family taking action to avoid them by moving
2. *Does Jose's membership in the PSG of family members of the late Angel Miralda significantly increase his risk of persecution?*

Yes. While the country conditions for Honduras do mention political and gang-related violence, Jose and his family seem to be at significantly higher risk due to their connection to Angel. Jose's membership in his PSG is a central reason for his well-founded fear of persecution.

If this case's nexus requirement had been evaluated now using only the information provided, it would likely rely heavily on the IJ's preferences. The only motive-related evidence is

⁹⁹Names in this scenario are generated using 'Honduran Name Generator' (WorldNames.xyz) <<https://worldnames.xyz/generator/honduras/>>.

a brief mention of Angel in the death threats, but even then it would be unclear why these individuals are targeting Jose. Additionally, the Results section showed that animus is especially important in cases involving family PSGs, drawing attention to the fact that the case does not elucidate why Jose and his family are being targeted. However, I argue that according to the REAL ID Act, the UNHCR's Guidelines, and international scholarship, the information provided in the excerpt should sufficiently demonstrate a nexus between Jose's PSG and his persecution. Jose is exposed to a significantly higher risk of persecution than other people because of his relationship to his late brother.

This line of reasoning is different but not dissimilar to that within some current cases. For example, the Ninth Court restates the same critical element of the nexus requirement in *Hernandez-Avalos v Lynch*: her PSG membership is “why she, and not another person, was threatened with death.”¹⁰⁰ The Convention ground distinguishes the applicant's predicament from those around them. Other cases referred to a similar idea by focusing on why an applicant might be “singled out.”¹⁰¹ No information about motive is necessary to arrive at these conclusions. In Jose's case, the *predicament approach* showed that his PSG membership is why he, and not another person outside his PSG, was threatened with death, harassed, and assaulted. In other words, the *predicament approach* was able to procure this conclusion without any details pertaining to the assailants or their inferred motives.

This section now turns to how the *predicament approach* would produce more consistent and accurate results in practice, building on existing trends in US asylum law. Finally, we will consider how it would change the interaction between the *one central reason* standard of proof and the appellate substantial evidence standard of review.

5.4.1. Consistency

The *predicament approach* will yield more consistent results, improving the lives of adjudicators and applicants. Some of the cases in my sample made clear that the reasoning provided by the IJ “[left] something to be desired.”¹⁰² Whether that was due to an incorrect standard, strange emotional interjections, or insufficient reasoning, the result is harmful to the applicant in Immigration Court and demonstrably during subsequent appeals. This harm is the

¹⁰⁰*Hernandez-Avalos v Lynch* (4th Cir 2015).

¹⁰¹*Ruiz v US Attorney General* (11th Cir 2006).

¹⁰²*Juana Hernandez-Garcia v William P Barr* (7th Cir 2019).

reason why UNHCR explicitly requires adjudicators to explain how the “reasons for rejection relate to the Applicant’s claim.”¹⁰³ The benefits of applying the *predicament approach* can only be realized if it is applied in Immigration Court. I argue it would be reasonable for Immigration Judges to use it because the variance observed among the cases appealed to the Circuit Court demonstrates that the IJs lack a consistent way to practically understand the nexus requirement. The *predicament approach* would, then, hopefully be welcome at all levels in the appeals process. For example, there were cases in the sample where the Circuit Court *de facto* applied the *but for* test when adjudicating the nexus requirement and others that, as mentioned, applied nothing. Instituting the *predicament approach* as a test for the *one central reason* standard would provide adjudicators at all levels with a tool that I believe they will use. The approach will make their decision-making quicker, more precise, and ultimately less likely to deny asylum seekers with legitimate claims.

For applicants, a primary benefit of the *predicament approach* is that country evidence would no longer be used against them so frequently in nexus determinations. Country context and circumstantial evidence generally provide valuable insight into overall risk, which is often why courts cite it when determining a negative nexus determination.¹⁰⁴ However, it should provide a frame of reference rather than a trump card for adjudicators. The truth is, of course, that different individuals can be at higher risk of harm because of their Convention identities, even when fleeing a country where the general populace is at some level of risk of harm. Political activists are more likely to be the targets of violence for speaking their beliefs in a politically turbulent country. Women are at greater risk of violence in states that legally or socially condone violence against them at the hands of their spouses or parents. When IJs fail to acknowledge these referential nuances and allow the overall country conditions to overpower a legitimate asylum claim, this applicant’s claim has been improperly evaluated. The *predicament approach*’s emphasis on objective risk will *ipso facto* take context into account.

Adjudicators and applicants would benefit from the fact that the *predicament approach* is equally applicable to future persecution, mitigating the risks described earlier in this section. For past persecution, the approach focuses on considering how or why the applicant came to be in their current situation. Like in Jose’s fictional case, we consider why the applicant’s current

¹⁰³UNHCR (n 8)

¹⁰⁴Or dissenting, see dissent of Fletcher in *Molina-Morales v INS* (USCA, 9th Cir. 2007).

predicament is happening. For future persecution, the analysis turns to the idea of risk – giving room for higher quality analysis than that centering around animus for actions that have yet to happen.

5.4.2. Current Trends

The US jurisdiction continues to place an excessively high degree of weight on the persecutor’s motives. It happens to such a degree that Hathaway and Foster noted that the current precedent confuses a sufficient condition for a necessary one.¹⁰⁵ Similar arguments have been put forward by the UNHCR in Guidelines on International Protection No. 9 and by practitioners in the US.¹⁰⁶ Supplementing the *one central reason* standard with the *predicament approach* responds to these arguments and better aligns the US with international standards by allowing courts to refrain from penalizing applicants who cannot demonstrate what motivated their attacker.¹⁰⁷ Simultaneously, it also does not prevent the courts from continuing to consider motive when relevant. If someone was able to provide proof of motive – perhaps letters, texts, credible testimony including quotes from one’s persecutors – this clearly satisfies the *predicament approach*’s test. The applicant’s exposure to risk is significantly increased because of these demonstrated intentions rooted in their Convention ground.

Furthermore, a 2021 update to the Code of Federal Regulations – the regulations that interpret laws like the INA – states that an applicant sustains their burden of proof if they show a “pattern or practice” of persecuting a group of persons similarly situated to him on account of a protected ground.¹⁰⁸ This mention of “pattern or practice” is perhaps the largest piece of evidence in favor of a continued push to move the US away from its fixation on persecutor motives. The *predicament approach* is fundamentally compatible with this line of reasoning. It would consider such patterns or practices as evidence for the Convention ground increasing one’s risk of exposure to persecution. Recent events like these indicate that the US is poised to make use of the predicament approach.

¹⁰⁵Hathaway and Foster (n 23) p. 368.

¹⁰⁶Chase (n 26)

¹⁰⁷*Mambwe v Holder* (8th Cir 2009).

¹⁰⁸8 C.F.R. § 208.13(b)(2)(iii).

5.4.3. Revisiting the Substantial Evidence Standard

Finally, the analysis turns back to the Circuit Courts: a primary benefit of the *predicament approach* is the increased ability of appellate courts to identify differences between reasonable and unreasonable decisions. This improvement is not unique to the *predicament approach* per se, but it is true of tests being applied generally. In its present condition, Circuit Courts are forced to determine when a nexus denial is so egregious that it merits usurping the deferential standard of review. They do so with sometimes haphazard interpretations of the case facts to the nexus requirement. As established thus far, the *predicament approach* would mitigate the latter problem. It would require a clear analysis of how an applicant's identity affects their exposure to the risk of harm and be evident when the IJ treats the country conditions as more than a frame of reference. It would, therefore, provide the Circuit Courts with sufficient information in more cases to remand when appropriate. As an empirical test, it is also more compatible with the substantial evidence standard that looks for "reasonable, substantial, and probative" evidence. The Circuit Courts will still filter through shades of whether the applicant's identity 'significantly' increases their exposure to risk; however, IJs who fail to provide evidence-based arguments will see an increase in their remand rates.

One potential risk will occur if the test is not condoned by all circuits, or is controversial, it will probably merit a case being heard before the Supreme Court. The Supreme Court has a conservative majority and historically has ruled unfavorably in cases about forced migration. However, the Supreme Court affirmed the *but for* test in 2020 when considering whether discrimination in an employment case was "because of" a protected identity under Title VII of the Civil Rights Act of 1964. The *predicament approach* is different in many ways, though both make use of empirical trends to consider the implications of the applicant's identity. Content aside, the Supreme Court affirming this test demonstrates a relatively recent judicial willingness to recognize causal tests in a comparable context. Furthermore, it is important to recall once more that the *predicament approach* evokes better compliance with the good faith understanding of the nexus requirement. Finally, the risk of a case being struck down before the Supreme Court does not merit continuing with the ad hoc inconsistency that allows applicants no valid route of appealing a nexus denial.

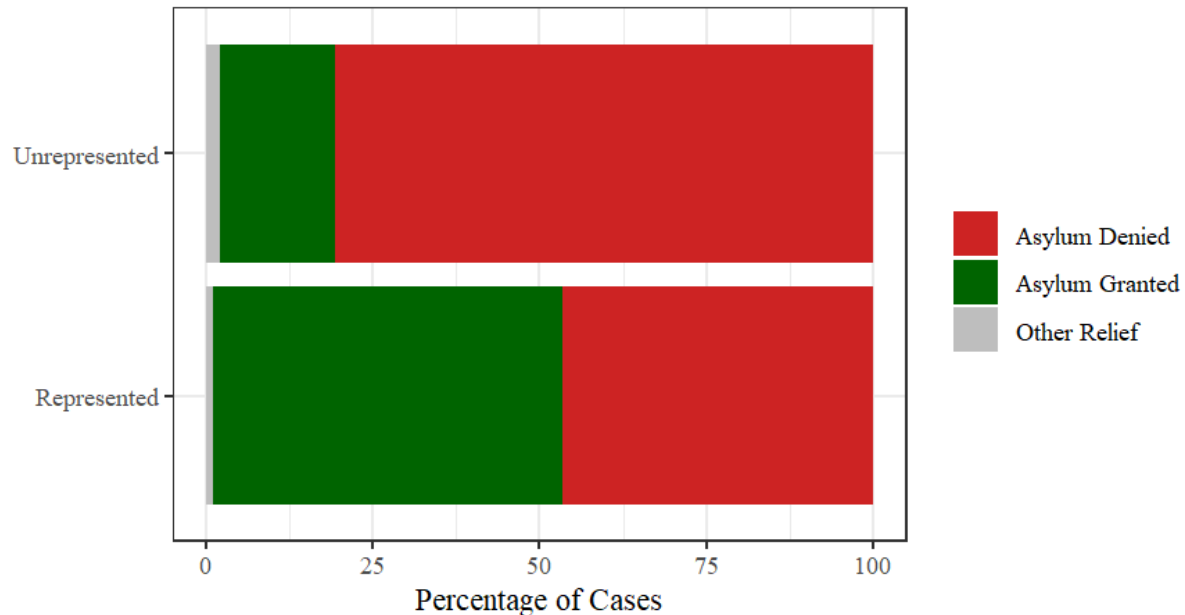
Supplementing the *one central reason* standard with the *predicament approach* eliminates many of the unpleasant byproducts created by the tension between the standard of proof and standard of review.

5.4.4. Practical Mitigation Strategies

The importance of standardizing the understanding and application of the *one central reason* standard is paramount, and the best solution is to implement the *predicament approach* as a test to do so. This change would need to happen through judicial advocacy or even regulatory reform spurred on by legal scholars and practitioners, which are not quick pathways to change. Therefore, it is necessary to consider mitigation strategies in the interim.

While it has not been the focus of this paper thus far, it is now time to look at what has been effective in asylum cases broadly: counsel. Unrepresented applicants are only awarded asylum in <18% of cases while represented applicants are awarded asylum in >50% of cases.

Figure 6: Immigration Court Outcome by Counsel
TRAC data FY24 through August 2024



The inconsistent application of the *one central reason standard* may contribute to this disparity. Perhaps, regardless of the role of counsel, an IJ's arbitrary application of the nexus requirement will still prevail at the same rate. While this theory could be true, especially in light

of the inconsistencies found in this paper's study, it is only logical that counsel would help the applicant provide sufficient evidence and coach them on providing testimony to establish the nexus. Indeed, the National Immigrant Justice Center advises attorneys to compile all three types of evidence (direct, circumstantial, and country conditions) on behalf of their clients to meet the nexus requirement.¹⁰⁹ Circuit Courts in my sample also seemed aware of the advantage that counsel offers applicants during Immigration Court and when filing an appeal. They mentioned "through counsel" or "with counsel" frequently in appeals when trying to contextualize – often legitimize – an applicant's argument.¹¹⁰ They mention it for good reason. The role of counsel becomes even more critical during appeals: the individual preparing the appeal must be knowledgeable and a capable legal writer. The appeal must "specifically and clearly identif[y] [appeals claims] in its opening brief; otherwise, the claim will be deemed abandoned and its merits will not be addressed."¹¹¹ Representation throughout the asylum process seems to support more favorable outcomes for applicants.

Yet, problems persist. Unfortunately, over 20% of immigration court cases so far this fiscal year were unrepresented, meaning the data suggests 1 in 5 applicants is facing less than 18% chance of a favorable outcome.¹¹² Representation is often out of reach because of prohibitive cost and overwhelming demand for pro bono representation.

Furthermore, some cases suffered from problematic counsel. In *Romero-De Guzman, et al v Garland*, the Tenth Circuit notes that the applicant and her counsel did not provide supplemental documentation despite years of opportunities afforded to them by administrative delays. Furthermore, the contents of their appeal do not mention humanitarian relief, rendering it unavailable to the Court with devastating consequences: "[a]lthough potentially an impermissible appellate factual finding, Romero does not challenge it."¹¹³ Romero-De Guzman's situation with counsel is regrettable and not representative of the whole; yet, this case does underscore the

¹⁰⁹National Immigrant Justice Center, *Slides for Advanced Training: Establishing Nexus in Asylum Cases After Matter of A-B-* (30 November 2018) <https://immigrantjustice.org/for-attorneys/legal-resources/file/slides-advanced-training-establishing-nexus-asylum-cases-after> accessed 2 October 2024.

¹¹⁰Very common, see for example *Jorge Flores-Benedict v Merrick Garland* (6th Cir 2021).

¹¹¹*Cole v U.S. Attorney General* (11th Cir 2013).

¹¹²TRAC, *Immigration Court Asylum Decisions* (Transactional Records Access Clearinghouse, Syracuse University) <https://trac.syr.edu/phptools/immigration/asylum/> accessed 2 October 2024.

¹¹³*Romero-De Guzman, et al v Garland* (10th Cir 2021).

importance of quality along with quantity of available representation. There will realistically never be enough quality pro bono legal support available to accommodate every asylum seeker.

This disconnect is a problem of scale. Therefore, providing scalable solutions like education and technology leveraged to assist self-representing applicants is essential. Many organizations like the National Immigrant Justice Center offer resources to applicants interested in educating themselves about the process. In terms of technology, there are some platforms in the US that support asylum seekers with other critical elements like employment, but I am not aware of any existing projects that focus on crafting successful asylum claims. One possible project would involve feeding asylum appeals cases into a large language model to generate knowledge about common pitfalls and effective asylum claims. Govinfo's website offers robust developer options making the data side relatively straightforward. If trained correctly, it could take in an applicant's written or transcribed input and generate legally-informed Convention grounds (especially when identifying a PSG) along with personalized recommendations for satisfying the individual's nexus requirement. It would also be able to do so with citations to case law and in a way that takes into consideration what circuit an applicant could potentially find themselves, if an appeal is needed.

6. Suggestions

One of the challenges in the discipline of refugee and forced migration studies is bridging the gap between scholarship and practice.¹¹⁴ Scholars often perform research on the lives of forcibly displaced persons, much like I did here, without generating actionable items. To combat this tendency, I humbly offer the following suggestions various stakeholders can take to mitigate the issues exposed in this paper:

Judges and other stakeholders affiliated with Immigration Court, the BIA, and the US Circuit Courts of Appeals

- Engage in judicial advocacy to incorporate the *predicament approach* into case law..
- Be clear why an applicant does or does not satisfy the nexus requirement under the *one central reason* standard.
- Consider whether the continued emphasis on motive aligns with Congress's intentions for the REAL ID Act and/or consider whether motive should be considered necessary or sufficient to satisfy the nexus requirement according to federal regulations.¹¹⁵

Policymakers and similar stakeholders

- Spearhead codification of the *predicament approach* in immigration legislation.
- Like judicial stakeholders, consider what policies might reinforce decentralizing motive.

Attorneys

- Donate time to represent asylum seekers in Immigration Court. As this paper demonstrates, the current appellate standard of review makes presenting strong evidence at this stage nearly vital to the applicant's success.
- Locate organizations working to educate asylum seekers and consider donating time for legal research or otherwise supporting their existing work.
- Stay abreast of technological advances and resources to refer to clients unable or unwilling to access representation.

¹¹⁴Fiddian-Qasmiyeh E et al., (n 15); Jacobsen K and Landau L, 'The Dual Imperative in Refugee Research: Some Methodological and Ethical Considerations in Social Science Research on Forced Migration' (2008) 27(3) *Disasters* 185.

¹¹⁵8 C.F.R. § 208.13(b)(2)(iii).

- If eligible, consider applying to become an Immigration Judge.¹¹⁶

Refugee scholars

- There were some notable gaps in literature that merit further research:
 - General stocktaking on nexus interpretation internationally. The last one was conducted in 2014 by Hathaway and Foster in the Law of Refugee Status.
 - Redo the same analysis from this paper on appeals in the Second Circuit.
 - Conduct additional investigation into adjudication at Immigration Courts with significant differences in approval rates by judge.
 - Perform this paper's analysis on appeals before the BIA.
- Advocate for regulatory reform incorporating the *predicament approach*.
- When performing research about the nexus requirement or similar topics, send the scholarship to organizations who may benefit from the research. I will send copies of this paper to relevant organizations.

General public

- Consider developing the large language model mentioned in the Discussion section and making it publicly available.
- Look for compassionate immigration views in political candidates when voting and donating. Be aware that judges at the US Circuit Court of Appeals are appointed by the President with the Senate's consent. BIA members and Immigration Judges are appointed by the Attorney General, who is in turn appointed by the President with consent of the Senate.

¹¹⁶Executive Office for Immigration Review, *Make a Difference – Apply for an Immigration Judge Position* (4 January 2022) <https://www.justice.gov/eoir/Adjudicators> accessed 2 October 2024.

7. Conclusions

Claiming asylum in the US is notoriously difficult. At its most extreme, it involves navigating complex government forms, undergoing interviews without an interpreter, facing expedited removal proceedings, repeatedly appearing before an adversarial court, adhering to strict appeal deadlines, and understanding the potentially erroneous reasons for denial – all while recounting and defending deeply traumatic experiences. Success too often hinges on factors beyond an applicant's control: having access to a translator, appearing before a knowledgeable Immigration Judge with a reasonable approval rate, receiving competent legal representation, or being in a circuit with favorable precedent. Being lucky in these capacities does not necessarily mean being granted asylum. It means simply being given a fair chance to be heard. The nexus requirement, including its *one central reason* standard, is just one piece of this complex puzzle. Yet, given the life-or-death consequences of asylum proceedings, even the smallest component warrants careful scrutiny – precisely what this paper aims to provide.

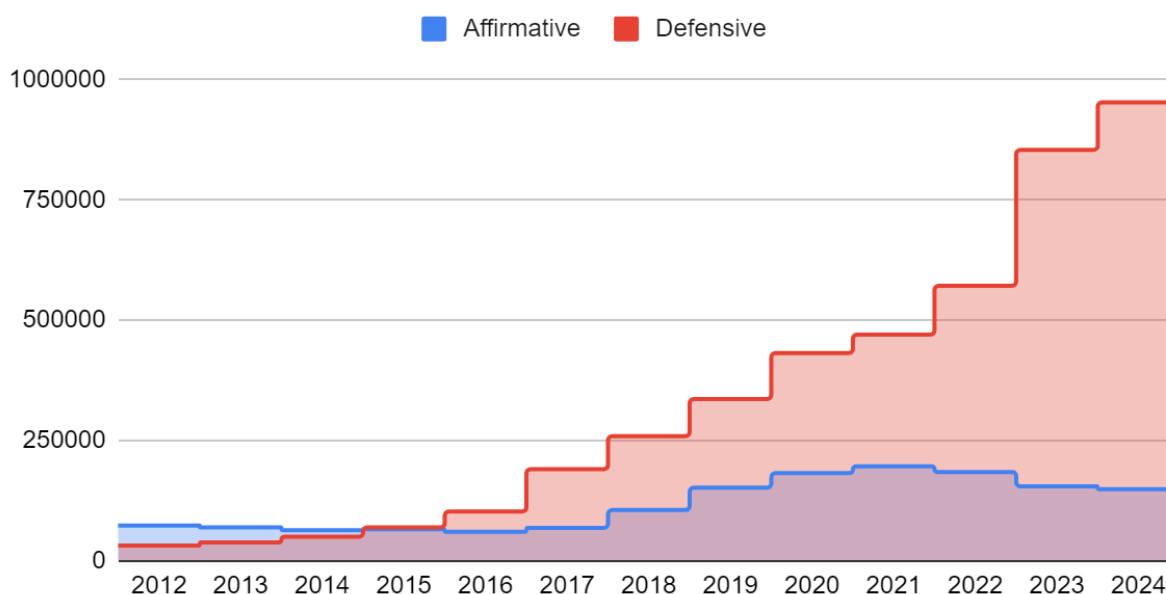
Overall, this study exposed a fatal combination in how the US interprets the nexus requirement: an opaque standard of proof placed on applicants and a conservative appellate standard of review. This combination on top of tremendous variance within both standards renders the nexus a legal minefield for applicants. This minefield is also one that detonates in silence because the nexus requirement is critically understudied in refugee law broadly. The inconsistency and appellate challenges surrounding the *one central reason* standard could be the reason someone is *refouled* to persecution in their home country. Supplementing the *one central reason* standard with the *predicament approach* reduces this risk by minimizing inconsistency overall and downstream appellate challenges. Asylum proceedings in the US would therefore become simpler and more humane if the *predicament approach* is allowed to supplement the *one central reason* standard.

Appendix

Entry 1: Immigration Court backlog showing both affirmative and defensive proceedings.

Immigration Court Asylum Backlog

TRAC data through June 2024



Entry 2: “Circumstances” that will generally not satisfy the nexus requirement per 8 CFR 208.1(f):

- (1) Interpersonal animus or retribution;
- (2) Interpersonal animus in which the alleged persecutor has not targeted, or manifested an animus against, other members of an alleged particular social group in addition to the member who has raised the claim at issue;
- (3) Generalized disapproval of, disagreement with, or opposition to criminal, terrorist, gang, guerilla, or other non-state organizations absent expressive behavior in furtherance of a

discrete cause against such organizations related to control of a State or expressive behavior that is antithetical to the State or a legal unit of the State;

(4) Resistance to recruitment or coercion by guerilla, criminal, gang, terrorist or other non-state organizations;

(5) The targeting of the applicant for criminal activity for financial gain based on wealth or affluence or perceptions of wealth or affluence;

(6) Criminal activity;

(7) Perceived, past or present, gang affiliation; or,

(8) Gender.

Entry 3: Sample data Country of Origin (COO)

Outcome	Count
China	4
Colombia	5
El Salvador	5
El Salvador	1
Ghana	1
Guatemala	9
Guinea-Bissau and Argentina	1
Haiti	1
Honduras	7
India	2

Lebanon	2
Lithuania	2
Nepal	3
Tajikistan	1
Ukraine	1
Uzbekistan	2

Entry 4: Example of an appeal without any case-specific content.

Jean Lorisson v Mukasey (4th Cir, 2008)

Appeal: 07-1624 Doc: 27 Filed: 03/13/2008 Pg: 1 of 3

UNPUBLISHED

UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

No. 07-1624

JEAN S. LORISSON,

Petitioner,

v.

MICHAEL B. MUKASEY, Attorney General,

Respondent.

On Petition for Review of an Order of the Board of Immigration
Appeals. (A77-850-164)

Submitted: February 13, 2008

Decided: March 13, 2008

Before TRAXLER and DUNCAN, Circuit Judges, and HAMILTON, Senior
Circuit Judge.

Petition denied by unpublished per curiam opinion.

James A. Roberts, LAW OFFICES OF JAMES A. ROBERTS, Falls Church,
Virginia, for Petitioner. Jeffrey Bucholtz, Acting Assistant
Attorney General, Michelle Gorden Latour, Assistant Director,
Kohsei Ugumori, Office of Immigration Litigation, UNITED STATES
DEPARTMENT OF JUSTICE, Washington, D.C., for Respondent.

Unpublished opinions are not binding precedent in this circuit.

PER CURIAM:

Jean S. Lorisson, a native and citizen of Haiti, petitions for review of an order of the Board of Immigration Appeals ("Board) affirming without opinion the immigration judge's order denying Lorisson's applications for asylum, withholding of removal and withholding under the Convention Against Torture ("CAT"). Lorisson claims he established a well-founded fear of persecution on account of a protected ground. We deny the petition for review.

The Immigration and Naturalization Act (INA) authorizes the Attorney General to confer asylum on any refugee. 8 U.S.C. § 1158(a) (2000). The INA defines a refugee as a person unwilling or unable to return to his native country "because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion." 8 U.S.C. § 1101(a)(42)(A) (2000). An applicant can establish refugee status based on past persecution in his native country on account of a protected ground. 8 C.F.R. § 1208.13(b)(1) (2006). Without regard to past persecution, an alien can establish a well-founded fear of persecution on a protected ground. Ngarurih v. Ashcroft, 371 F.3d 182, 187 (4th Cir. 2004).

An applicant has the burden of demonstrating his eligibility for asylum. 8 C.F.R. § 1208.13(a) (2007); Gandziami-Mickhou v. Gonzales, 445 F.3d 351, 353 (4th Cir. 2006). A

determination regarding eligibility for asylum is affirmed if supported by substantial evidence on the record considered as a whole. INS v. Elias-Zacarias, 502 U.S. 478, 481 (1992). This court will reverse the Board "only if the evidence presented was so compelling that no reasonable factfinder could fail to find the requisite fear of persecution." Rusu v. INS, 296 F.3d 316, 325 n.14 (4th Cir. 2002) (internal quotation marks and citations omitted).

We find sufficient evidence supports the finding that Lorisson failed to show a well-founded fear of persecution based on a protected ground and the record does not compel a different result. Accordingly, we will not disturb the immigration judge's denial of Lorisson's applications for asylum and withholding from removal. Because Lorisson did not challenge in his brief the denial of relief under the CAT, the claim is not preserved for review. See Edwards v. City of Goldsboro, 178 F.3d 231, 241 n.6 (4th Cir. 1999).

Accordingly, we deny the petition for review. We dispense with oral argument because the facts and legal contentions are adequately presented in the materials before the court and argument would not aid the decisional process.

PETITION DENIED

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